

Torbay Corporation (No. 2) Act 1971

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ELIZABETH II



1971 CHAPTER lx

An Act to confer further powers on the mayor, aldermen and burgesses of the county borough of Torbay; to make further provision with regard to the health, local government, improvement and finances of that borough; and for other purposes.

[5th August 1971]

WHEREAS—

(1) The borough of Torbay is a county borough under the management and local government of the mayor, aldermen and burgesses of the county borough of Torbay:

(2) It is expedient that further and better provision should be made with reference to lands, streets and buildings, and in regard to the health, local government, improvement and finances of the county borough of Torbay, and that the powers of the mayor, aldermen and burgesses of the county borough should be enlarged and extended as in this Act provided:

(3) It is expedient that the other provisions contained in this Act should be enacted:

(4) The purposes of this Act cannot be effected without the authority of Parliament:

(5) In relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows, that is to say:—

PART I

PRELIMINARY

Short and collective titles. Act 1971. 1.—(1) This Act may be cited as the Torbay Corporation (No. 2) Act 1971.

1971 c. xxxiii. (2) The Torbay Corporation Act 1971 and this Act may be cited together as the Torbay Corporation Acts 1971.

Commence-ment of Act. 2. Save as otherwise expressly provided, the provisions of this Act shall come into force on 1st September, 1971.

Division of Act into Parts. 3. This Act is divided into Parts, as follows:—

Part I.—Preliminary.

Part II.—Lands.

Part III.—District heating.

Part IV.—Streets.

Part V.—Public health.

Part VI.—Public order and safety.

Part VII.—Trade administration and licensing.

Part VIII.—Cultural activities.

Part IX.—Finance and superannuation.

Part X.—Miscellaneous.

Part XI.—General.

4.—(1) In this Act the several words and expressions to which meanings are assigned by section 343 of the Act of 1936 have the same respective meanings unless there be something in the subject or context repugnant to such construction.

PART I
—cont.

(2) In this Act unless otherwise expressly enacted or unless the subject or context otherwise requires the following expressions have the meanings hereby respectively assigned to them:—

- “ the Act of 1933 ” means the Local Government Act 1933; 1933 c. 51.
- “ the Act of 1936 ” means the Public Health Act 1936; 1936 c. 49.
- “ the Act of 1945 ” means the Water Act 1945; 1945 c. 42.
- “ the Act of 1955 ” means the Food and Drugs Act 1955; 1955 c. 16.
- “ the Act of 1957 ” means the Housing Act 1957; (4 & 5 Eliz. 2). 1957 c. 56.
- “ the Act of 1959 ” means the Highways Act 1959; 1959 c. 25.
- “ the Act of 1960 ” means the Road Traffic Act 1960; 1960 c. 16.
- “ the Act of 1965 ” means the Compulsory Purchase Act 1965; 1965 c. 56.
- “ the Act of 1967 ” means the Road Traffic Regulation Act 1967 c. 76.
1967 as printed pursuant to section 133 of the Transport Act 1968; 1968 c. 73.
- “ the appointed day ” has the meaning assigned to it by section 115 (The appointed day) of this Act;
- “ the borough ” means the county borough of Torbay;
- “ contravention ” includes a failure to comply and
“ contravene ” shall be construed accordingly;
- “ the Corporation ” means the mayor, aldermen and burgesses of the borough acting by the council;
- “ the council ” means the council of the borough;
- “ the electricity board ” means the South Western Electricity Board;
- “ enactment ” includes an enactment in this Act or in any general or local Act and any orders, byelaws, schemes or regulations for the time being in force within the borough;
- “ the gas board ” means the South Western Gas Board;
- “ the general rate fund ” means the general rate fund of the borough;
- “ the generating board ” means the Central Electricity Generating Board;
- “ the heating undertaking ” means the undertaking of the Corporation authorised by Part III (District heating) of this Act and includes all land, stations, boiler-houses, properties, works, buildings, machinery, plant, mains, pipes, apparatus, appliances, easements, rights, powers and privileges for the time being belonging to or held,

PART I
—cont.

used or enjoyed by the Corporation for or in connection with the provision, storage, transmission, distribution and supply of heat as defined in section 17 (Interpretation of this Part of Act) of this Act;

“land” includes buildings, land covered by water and any rights over land;

1952 c. 55.

“magistrates’ court” has the same meaning as in the Magistrates’ Courts Act 1952;

“operational land” in relation to statutory undertakers (other than the Post Office) means land which is used for the purpose of the carrying on of their undertaking and land in which an interest is held for that purpose, not being land which, in respect of its nature and situation, is comparable rather with land in general than with land which is used, or in which interests are held, for the purpose of the carrying on of statutory undertakings and, in relation to the Post Office, has the same meaning as in paragraph 93 (4) of Schedule 4 to the Post Office Act 1969;

1969 c. 48.

“statutory undertakers” means the electricity board, the Gas Council, the gas board, the generating board, the water undertakers and the Post Office or any of them as the case may be;

1878 c. 76.

“telegraphic line” has the same meaning as in the Telegraph Act 1878;

“the water undertakers” means the South West Devon Water Board.

(3) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by or by virtue of any subsequent enactment, including this Act.

PART II

LANDS

Acquisition
of land for
development.

5.—(1) The Corporation may purchase by agreement land in the borough for the purpose of facilitating the provision of premises for occupation by any undertaking carried on or to be carried on there or for otherwise meeting the requirements of such undertaking (including the requirements arising from the needs of persons employed or to be employed therein).

(2) In this section “undertaking” includes any trade or business, or any other activity providing employment.

Management
of housing
estates.

6. The powers of the Corporation under subsection (1) of section 112 of the Act of 1957 shall extend so as to enable them to make byelaws for the management, use and regulation of any

land held and occupied by them for the purposes of Part V of that Act not being land on which a building is erected or land within the curtilage of a building or a highway.

PART II
—cont.

7.—(1) The Corporation may, upon land within or outside the borough, provide a golf course, and for that purpose may provide such buildings, and execute such works, as may be necessary or expedient.

(2) References in the following provisions of this section to a golf course provided under this section shall include references to any buildings provided, or works executed, under the foregoing subsection, and to anything with which any such golf course or building is equipped by virtue of section 271 of the Act of 1936 as applied by this Act.

(3) The Corporation may either—

- (a) themselves manage a golf course provided under this section, making such reasonable charges for the use thereof, or admission thereto, as they think fit; or
- (b) let it, or any part thereof, for such consideration, and on such terms and conditions, as they think fit.

(4) The Corporation may—

- (a) at a golf course provided under this section, provide and sell refreshments of all kinds, subject to the provisions of all enactments relating thereto;
- (b) enter into any agreement or arrangement for the provision and sale of refreshments as aforesaid;
- (c) grant, upon such terms and conditions, and for such period, as they think fit, the right so to provide and sell refreshments;
- (d) by themselves, or any person appointed by them in that behalf, apply for, and hold, licences for the sale of intoxicating liquor at any such golf course.

(5) The Corporation may make byelaws for regulating the use of golf courses provided under this section, whether within or outside the borough, and the conduct of persons using them or resorting thereto.

8.—(1) In the event of the Corporation establishing, in pursuance of sections 19 and 20 of the Civil Aviation Act 1949, an aerodrome, with or without any ancillary business in connection therewith (in this section referred to as “the aerodrome undertaking”), they may either—

- (a) themselves manage the aerodrome undertaking, making such reasonable charges in respect thereof as they think fit ; or

PART II
—cont.

- (b) subject to the provisions of subsection (6) of the said section 19, let it, or any part thereof, for such consideration, and on such terms and conditions, as they think fit:

Provided that nothing in this subsection shall authorise any variation of a scale of charges approved or prescribed by the Secretary of State in pursuance of powers conferred on him by or under the said Act.

- (2) The aerodrome undertaking shall be in the same relation to the Secretary of State, and subject to the like control by him under the said Act, as if this Act had not been passed.

Power of constables to enforce byelaws.

9. From and after the passing of this Act, any police constable shall have the same power of enforcing byelaws made by the Corporation as is given to the servants of the Corporation by the byelaws from time to time in force.

Extension of section 4 of Physical Training and Recreation Act 1937.
1937 c. 46.

- 10.—(1) Powers of the Corporation under section 4 of the Physical Training and Recreation Act 1937 shall include the power—

- (a) to provide and arrange for the training of wardens, teachers and leaders in respect of any facilities for exercise, recreation and social activities provided by, or by arrangement with them at any premises used as recreational or sports centres, or as a park, open space, golf course, playing field or swimming bath provided by them or under their control or management;
- (b) to provide boating facilities and for that purpose the Corporation may, within the borough, provide and maintain such yacht basins, buildings, slipways, jetties, moorings, starting boxes and other works as may be necessary or expedient for the purpose thereof or in connection therewith.

1906 c. 25.

- (2) In this section “open space” has the same meaning as in the Open Spaces Act 1906.

Compensation may be in land.

- 11.—(1) The Corporation, when they are required by any enactment to make compensation to any person interested in any land, may by agreement with such person make such compensation wholly or partly in works, land or money but in the case of land for the alienation of which the consent of any government department is required, only with such consent.

- (2) Nothing in this section shall release the Corporation or any person purchasing or acquiring any land or interest in land from them under this section from any rents, covenants, restrictions,

reservations, terms or conditions made payable by or contained in any conveyance, lease or other deed or instrument by which the land or interest has been conveyed or leased to or otherwise acquired by the Corporation or any persons from or through whom the Corporation have derived title to it.

12. Notwithstanding anything in the Lands Clauses Consolidation Act 1845, or the Act of 1965, it shall be lawful for the High Court at any time not being less than twelve years after any sum has been paid by the Corporation into the Supreme Court in pursuance of section 76 of the said Act of 1845 or section 9 of the Act of 1965, or paid by the Corporation into the Supreme Court by way of security in pursuance of section 85 of the said Act of 1845 or Schedule 3 to the Act of 1965, to order upon application by the Corporation that the money so paid or the fund in which the sum shall have been invested, together with the accumulations thereto, shall be repaid or transferred to the Corporation:

Recovery of deposits under Lands Clauses Acts or Act of 1845 c. 18.

Provided that upon the application of any person making claim to the money paid as aforesaid or any part thereof or to the lands in respect of which the same shall have been paid or any part of such lands or any interest in the same, the High Court may order such money as has been repaid or transferred to the Corporation under the provisions of this section or any part thereof to be paid to the person making such claim and may make such other order in the premises as the High Court shall think fit.

13.—(1) Every undertaking given to the Corporation by the owner of a legal estate in land, and every agreement made between the Corporation and any such owner, being an undertaking or agreement—

Undertakings and agreements binding successive owners.

- (a) given or made under seal on the passing of plans or otherwise in connection with the land; and
- (b) expressed to be given or made in pursuance of this section;

shall, if registered in the local land charges register, be enforceable by the Corporation against the person or persons who entered into, or joined as a party to such undertaking or agreement and all persons deriving title by, through or under him or them.

(2) Any person against whom such an undertaking or agreement is enforceable shall be entitled to require from the Corporation a copy thereof.

14.—(1) A person other than an officer of the Corporation or a person or the servant of a person who has a contract with the Corporation in or about any work in connection with the cemeteries, crematoria or burial grounds belonging to the

As to offences in cemeteries.

PART II
—cont.

Corporation shall not except for the purpose of properly tending the same pluck out or otherwise interfere with any flower, plant, shrub, wreath, ornament, memorial or other thing on any grave in a cemetery, crematorium or burial ground belonging to or maintained by the Corporation.

(2) Any person who offends against the provisions of this section shall be guilty of an offence.

Enforcement
of restrictive
covenants
relating to
land acquired
for open
spaces.

15.—(1) Where the Corporation have either before or after the passing of this Act contributed or agreed to contribute towards or in connection with the acquisition or utilisation by the council of any other borough or of any county, urban or rural district or any other public body (in this section referred to as an “authority”) or by any person or any trustees of land for the purpose of a public or private open space, recreation or pleasure ground, public walk, sports ground or playing fields, or towards the layout or maintenance of such land and such authority, person or trustees have or has, either before or after the passing of this Act, in consideration of such contribution or of an agreement to make such contribution, entered into a covenant with the Corporation restrictive of the user of such land, the Corporation shall have power (in addition to any other rights or remedies under the instrument containing such covenant) to enforce such covenant against such authority, person or trustees and against the persons deriving title under them or him in the like manner and to the like extent as if the Corporation were possessed of adjacent land capable of being benefited by such covenant and as if such covenant had been expressed to be entered into for the benefit of such adjacent land.

(2) Where an authority have either before or after the passing of this Act contributed towards or in connection with the acquisition or utilisation by the Corporation of land for the purpose of a public or private open space, recreation or pleasure ground, public walk, sports ground or playing fields, or towards the layout or maintenance of such land and the Corporation have either before or after the passing of this Act in consideration of such contribution or of an agreement to make such contribution entered into a covenant with such authority restrictive of the user of such land, such authority shall have power (in addition to any other rights or remedies under the instrument containing such covenant) to enforce such covenant against the Corporation and the persons deriving title under them in the like manner and to the like extent as if such authority were possessed of adjacent land capable of being benefited by such covenant and as if such covenant had been expressed to be entered into for the benefit of such adjacent land.

(3) (a) For the purposes of section 15 of the Land Charges Act 1925, any covenant referred to in this section shall be deemed

to be a restriction on the user or mode of user of land or buildings enforceable by a local authority under a covenant or agreement made with them.

PART II
—cont.

(b) This section shall not apply to a covenant contained in any instrument made before 27th November, 1970, unless the restrictions enforceable under such covenant were registered as local land charges within twelve months after that date.

(4) Any covenant to which this section applies shall continue to be enforceable notwithstanding that the land intended to be affected thereby may have passed to an authority acquiring the same by agreement under the Lands Clauses Consolidation Act 1845 or any Act incorporating that Act.

1845 c. 18.

(5) Nothing in this section shall deprive the Corporation or any authority, person or trustees of any right to enforce a covenant to which this section applies which they or he would have had if this section had not been enacted.

16.—(1) (a) If representation is made in manner hereinafter mentioned to the Corporation that the amenities of the neighbourhood are prejudiced by the habitual use of the front garden of any private dwelling-house in a street in the borough as a parking place for one or more heavy commercial vehicles the Corporation on complying with the provisions of this section may make an order precluding the use of the front gardens of the private dwelling-houses in that street or any part thereof as a parking place for heavy commercial vehicles.

Prohibition
of parking
in front
gardens.

(b) A representation under the foregoing paragraph shall be made in writing and signed by not less than ten local government electors residing in private dwelling-houses which are within 100 yards of the said front garden.

(2) (a) If the Corporation consider that such an order should be made they shall publish a notice thereof in a local newspaper circulating in the borough and stating where the draft order can be inspected and copies purchased, and that objections to the said order may be made in writing to the Corporation within one month from the date of the first publication of the notice.

(b) The Corporation shall consider all such objections and shall afford to the owner or occupier of every dwelling-house abutting or fronting on such street or such part thereof who has made objection an opportunity of being heard by a committee of the council before the order is made.

(3) (a) After considering any objections duly made under the last foregoing subsection the Corporation may make an order prohibiting the use of the front garden of any dwelling-house in the street or the part of a street specified in the order as a parking place for one or more heavy commercial vehicles.

PART II
—cont.

(b) Any such order shall come into operation at the expiration of the period of one month after the first publication in pursuance of subsection (4) of this section of the notice of the order or, if an appeal is lodged, when the appeal is disposed of or withdrawn or fails for want of prosecution and shall have effect for such period not exceeding five years as the Corporation may determine.

(4) When an order has been made by the Corporation under this section they shall give notice thereof and of the right of appeal by publication in a local newspaper circulating in the borough and the owner or occupier of a dwelling-house in the borough who is aggrieved by the order may appeal to a magistrates' court:

Provided that in its application to an appeal under this section section 300 of the Act of 1936 shall have effect as if the time within which such an appeal may be brought were one month from the first publication in pursuance of this subsection of the notice of the order to which the appeal relates.

(5) For the purposes of this section—

“ dual-purpose vehicle ” means a vehicle constructed or adapted for the carriage both of passengers and of goods or burden of any description being a vehicle of which the unladen weight does not exceed two tons and which either—

(a) satisfies the conditions as to construction specified in Schedule 1 to this Act; or

(b) is so constructed or adapted that the driving power of the engine is or by the appropriate use of the controls of the vehicle can be transmitted to all the wheels of the vehicle;

“ front garden ” means so much of a garden or land belonging to or used in connection with a private dwelling-house as lies in front of—

(a) any building line prescribed by the Corporation in respect of the land under the provisions of any enactment; or

(b) if there be no such line then any line beyond which a house or building may not be erected on the land without infringing a condition enforceable by the Corporation under section 169 of the Act of 1959; or

(c) if there be neither of such lines then the line beyond which a house or building may not (except with the consent of the Corporation) be erected or brought forward on the land without contravening the provisions of section 75 of the Act of 1959;

“ heavy commercial vehicle ” means any vehicle (not being a dual-purpose vehicle) whether mechanically propelled or not constructed or adapted for the carriage of goods and having an unladen weight exceeding thirty hundredweight;

“ private dwelling-house ” means a dwelling-house of which no part is used for the purposes of any trade or business and includes a block of flats no part of which is used for the purposes of any trade or business.

PART II
—cont.

(6) For the purposes of this section a vehicle having an unladen weight exceeding thirty hundredweight in which is installed freezing equipment designed or used for the manufacture of ice-cream or any similar commodity and which but for the installation of that equipment would have an unladen weight of thirty hundredweight or less shall be deemed not to be a heavy commercial vehicle but the exemption afforded to such a vehicle by this subsection shall only have effect—

- (a) if and so long as the equipment is not in operation; or
- (b) if the equipment is in operation, if and so long as it is so operated as not to cause a nuisance by reason of the noise of the equipment in operation or the smell emanating from it.

(7) The occupier of any front garden or part thereof or the person having control of a front garden or part thereof who permits the same to be used in contravention of an order under this section and any person who parks a heavy commercial vehicle in a front garden in contravention thereof shall be guilty of an offence.

PART III

DISTRICT HEATING

17. In this Part of this Act—

Interpretation
of this Part
of Act.

“ heat ” means heat however supplied and includes hot water and hot air but does not include gas other than non-combustible gas;

“ heating fittings ” includes radiators, air heaters, water heaters, mains, pipes, meters, taps, cocks, valves, ferrules and other works and apparatus used in connection with and forming part of the heating undertaking;

“ main ” includes mechanical and thermal protection for a main and apparatus used in connection with a main.

PART III

—cont.

Works for
provision of
heat.

18.—(1) Subject to the provisions of this Part of this Act, the Corporation may on any lands belonging to or leased to them erect, lay down, maintain, work and use stations, boiler-houses, mains, pipes and other works for providing, storing, transmitting, distributing and supplying heat and for producing any material, product, matter or thing arising or used in the process of such provision of heat (including the generation of electricity), together with such buildings, boilers, engines, pumps, machinery, lifts, hoists, sidings, electric lines, matters and things of whatever description as may be required by the Corporation to enable them to provide, store, transmit, distribute and supply heat, and the Corporation may accordingly on those lands provide, store, transmit, distribute and supply heat and may produce such materials, products, matters and things:

Provided that—

- (a) nothing in this section shall be taken to dispense with the consent of any government department to any use of any lands of the Corporation in any case in which such consent would have been required if this section had not been enacted;
- (b) any electrical works or equipment erected, laid down, maintained, worked or used pursuant to the powers conferred by this section shall be so erected or laid down and so maintained, worked and used as to prevent interference with any telegraphic line belonging to or used by the Post Office or with telecommunication by means of any such line;
- (c) before installing any engines or machinery for the generation of electricity (other than electricity to be used for or in connection with the supply of heat under the powers of this Part of this Act at the works at which it is generated), the Corporation shall consult with the generating board and shall not install such engines or machinery except with the agreement of that board.

(2) Any electricity generated by the Corporation as aforesaid may be sold—

- (a) to the generating board; or
- (b) with the approval of the generating board to the electricity board;

and any electricity so generated and not so sold as aforesaid may be used only for or in connection with the supply of heat under the powers of this Part of this Act at the works at which it is generated or (with the consent of the generating board and the electricity board) elsewhere.

(3) The generating board shall, subject to the terms of any agreement made under paragraph (c) of the proviso to subsection (1) of this section, take all the electricity generated by the Corporation as aforesaid which is not—

- (a) required for or in connection with the heating undertaking;
or
- (b) supplied to the electricity board with the approval of the generating board;

upon such terms and conditions as may be agreed between the Corporation and the generating board or, in default of agreement, determined by arbitration, and the arbitrator in determining the terms and conditions shall have regard to the costs which the generating board would incur in producing the equivalent amount of electricity from their own resources.

(4) Before implementing to any material extent any powers contained in this Part of this Act for providing, storing, transmitting, distributing or supplying heat, the Corporation shall give notice of their proposals (together with such information and estimates with regard to their proposals as may reasonably be required) to the generating board, the electricity board, the Gas Council, the gas board, and to such other bodies as the Corporation may consider it appropriate to consult, and if so requested in writing by any of such boards or bodies within fourteen days after the date of the receipt by that board or that body of such information, the Corporation shall consult with that board or that body as to the Corporation's proposals and any alternative proposals which may within three months after that date be submitted by that board or that body.

19.—(1) The Corporation may enter into and carry into effect agreements with any person able to give a supply of heat for the furnishing to the Corporation by such person for the purposes of this Part of this Act of such a supply and—

- (a) any such person may enter into any such agreement accordingly; and
- (b) any such agreement may provide for the provision by the Corporation or for the joint user by them and any other party to the agreement of any works, plant, materials or things required for the purposes of the agreement; and
- (c) the Corporation may let any land which they may possess to any such person to enable that person to supply heat in accordance with the agreement.

(2) The Corporation may for the said purposes also enter into and carry into effect agreements for the taking and use of

PART III
—cont.

surplus heat from any generating station or gasworks, refuse destructor or industrial plant, and any person able to supply heat may enter into such an agreement.

Supply of
heat.

20.—(1) The Corporation may supply heat to—

(a) such premises in the borough; and

(b) such premises owned by them outside the borough;

as they may think fit, upon and subject to the provisions of this Part of this Act and such terms and conditions as may be agreed between the Corporation and the owners or occupiers of the premises.

(2) In the exercise of the powers of this section the Corporation shall not show undue preference to any person and shall not exercise any undue discrimination against any person.

(3) Before the Corporation enter into an agreement with the occupier of any premises for the supply of heat to such premises, they shall give notice of their intention so to do to the owner of the premises and, in the event of the supply of heat to such premises being discontinued, notice of such discontinuance shall be given by the Corporation to the owner of such premises.

Power to lay
mains, etc.,
and break
open streets.

21.—(1) The following provisions of the Third Schedule to the Act of 1945 are hereby incorporated with this Part of this Act, namely:—

Part V (Power to lay mains, etc.);

Section 22 (Power to break open streets);

Section 25 (Protection for railway companies, navigation authorities, tramway undertakers, etc.);

Section 27 (Remedies where undertakers fail to comply with foregoing requirements);

Section 28 (Application of Part VI to verges and streets and highways not maintainable at the public expense); and

Section 93 (Protection for works of navigation authorities and for catchment boards and railways).

(2) For the purposes of this Part of this Act, in the construction of the provisions incorporated by this section—

“limits of supply” means the borough;

“mains” includes a pipe or duct for the transmission of heat whether or not that transmission is for the purpose of the supply of heat;

“service pipe” means a pipe or duct for supplying heat from a main to any premises;

“ supplying water ” means supplying heat and “ supply of water ” shall be construed accordingly; and

“ the undertakers ” means the Corporation.

PART III
—cont.

(3) Nothing in the provisions incorporated by this section shall authorise the Corporation to lay down a main outside the borough except for the purpose of—

(a) giving or facilitating the supplying of heat in accordance with the provisions of this Part of this Act; or

(b) taking a supply of heat from any works or premises outside the borough.

22.—(1) For the purposes of the heating undertaking or in connection with the use or sale of electricity under the provisions of subsection (2) of section 18 (Works for provision of heat) of this Act the Corporation may lay down or erect electric lines and apparatus—

Power to lay down or erect electric lines, etc.

(a) in, under or over any street, subject however to the provisions of subsection (3) of this section; and

(b) with the consent of every owner and occupier of any lands not forming part of a street in, on or over those lands;

and may from time to time inspect, repair, alter or renew or may at any time remove any electric line or apparatus laid down or erected by them whether by virtue of this section or otherwise:

Provided that a consent required for the purposes of this subsection shall not be unreasonably withheld, and any question whether such a consent is or is not unreasonably withheld shall be referred to and determined by the Secretary of State.

(2) (a) Where the Corporation in the exercise of the powers of this section lay down or erect any electric line or apparatus in, on or over any lands not forming part of a street or inspect, repair, alter, renew or remove any electric line or apparatus laid down or erected in, on or over any such lands, they shall from time to time pay compensation to every person interested in that land for any damage done to or injurious affection of that land by reason of the laying down, erection, inspection, repair, alteration, renewal or removal of the electric line or apparatus.

(b) Any dispute as to the amount of compensation to be paid under this subsection shall be determined by arbitration.

(3) The following provisions of the Third Schedule to the Act of 1945 shall apply with the necessary modifications to the laying down, erection, inspection, repair, alteration, renewal or removal of electric lines and apparatus under this section:—

Section 22 (Power to break open streets);

PART III
—cont.

Section 25 (Protection for railway companies, navigation authorities, tramway undertakers, etc.);

Section 27 (Remedies where undertakers fail to comply with foregoing requirements);

Section 28 (Application of Part VI to verges and streets and highways not maintainable at the public expense); and

Section 93 (Protection for works of navigation authorities and for catchment boards and railways).

(4) For the purpose of such application, the Corporation shall be deemed to be the undertakers and the limits of supply shall be deemed to be the borough.

1888 c. 12.
1947 c. 54.
1889 c. 19.
1969 c. 48.

(5) Without prejudice to the operation of section 4 of the Electric Lighting Act 1888, those provisions of the Electricity (Supply) Acts 1882 to 1936, as amended by the Electricity Act 1947, and in the schedule to the Electric Lighting (Clauses) Act 1899 which as applied by the Post Office Act 1969 afford protection to the Post Office and its telegraphic lines, shall, so far as applicable, extend and apply to any electric lines or apparatus laid down or erected under this section, and references in those provisions to the electricity board or the undertakers shall be construed as references to the Corporation.

(6) The powers of this section shall not be exercised except with the consent of the electricity board which consent shall not be unreasonably withheld and any dispute as to whether such consent is or is not unreasonably withheld shall be determined by the Secretary of State.

(7) Any regulations made by the Secretary of State under section 60 of the Electricity Act 1947, and any regulations having effect as if they had been made under that section, shall apply to electric lines and apparatus laid down or erected by the Corporation under this section.

Power to
supply fittings.

23.—(1) In any premises to which the Corporation supply or propose to supply heat they may provide (but not manufacture), and may supply by way either of sale or hire, any such heating fittings as may be required for or in connection with the supply or utilisation of the heat so supplied, and may install, repair, renew or alter any heating fittings, whether supplied by them or not, and may provide any materials and do any work required in connection with such installation, repair, renewal or alteration.

(2) The Corporation may make such charges as may be agreed or, in default of agreement, as may be reasonable for any heating

fittings supplied or any materials provided or work done under this section at the request of the owner or occupier of the premises supplied.

PART III
—cont.

(3) Any heating fittings let for hire by the Corporation and marked or impressed with a sufficient mark or brand indicating the Corporation as the actual owners thereof—

(a) shall not be subject to distress or to the landlord's remedy for rent, nor be liable to be taken in execution under process of any court or any proceedings in bankruptcy against the person in whose possession the same may be; and

(b) shall, notwithstanding that they be fixed or fastened to any part of the premises in which they may be situate or to the soil under any such premises, at all times continue to be the property of and (subject to the provisions of the Hire-Purchase Act 1965) removable 1965 c. 66. by the Corporation:

Provided that nothing in this subsection shall affect the valuation for rating of any rateable hereditament.

(4) All heating fittings supplied by the Corporation under any hire-purchase agreement shall, until payment of the final instalment of the purchase money for such fittings, be deemed for the purposes of subsection (3) of this section to be fittings let for hire by the Corporation.

(5) The Corporation shall so adjust the charges to be made under this section that the income therefrom will, taking one year with another, meet any expenditure by them thereunder, including interest upon any moneys borrowed for the purposes thereof, establishment charges, and any sums carried to a sinking fund for repayment of moneys so borrowed and the cost of repairs or renewals.

(6) (a) Any person who wilfully injures or suffers to be injured any heating fittings belonging to the Corporation shall be guilty of an offence.

(b) Without prejudice to the foregoing provisions of this subsection, the Corporation may do all such work as is necessary for repairing any injury done and may recover the expenses reasonably incurred by them in so doing from the offender, either as a simple contract debt in any court of competent jurisdiction, or, if the amount does not exceed twenty pounds, summarily as a civil debt.

24.—(1) The Corporation may from time to time prescribe Heating a scale of charges (in this section called "heating charges") for charges. heat supplied to premises under the powers of this Part of this Act and for connecting premises to the heating undertaking and

PART III
—cont.

(where premises have been disconnected from the said undertaking) for reconnecting premises thereto, and where heat is so supplied to any premises the heating charges in accordance with the scale shall be payable by the occupier of those premises except in any case where the owner has agreed with the Corporation to pay the same, in which case they shall be payable by the owner.

(2) The heating charges payable by any person may after a demand therefor be recovered from him by the Corporation, either as a simple contract debt in any court of competent jurisdiction or, if the amount does not exceed twenty pounds, summarily as a civil debt and, where a person fails to pay within seven days after a demand therefor any heating charges payable by him in respect of any premises, the Corporation may cut off the supply of heat to the premises and recover the expenses reasonably incurred by them in so doing in the same manner as the heating charges:

Provided that if, before the expiration of the said seven days, notice is given to them that there is a dispute as to the amount due in respect of the heating charges or as to the liability to pay the same, the Corporation shall not cut off the supply of heat until the dispute has been settled or, on the application of either party, determined by a court of competent jurisdiction.

(3) Without prejudice to any other method of recovery, any heating charges payable by the occupier of any premises of which he is the tenant of the Corporation and connected as aforesaid may be recovered as rent due from him.

Security for
payment of
accounts.

25. The Corporation may require any person desiring to take a supply of heat or to be supplied with heating fittings or materials under this Part of this Act to deposit with the Corporation such sum as the Corporation may reasonably require as security for the payment of any moneys which may become due from him to the Corporation in respect of such supply of heat or of any fittings or materials supplied to him in connection therewith.

Discount for
prompt
payment.

26.—(1) The Corporation may, if they think fit, make an allowance by way of discount on all sums of money due to them for the supply of heat or meter rent or for heating fittings or materials supplied at the request of the owner or occupier of the premises from any person who pays the same within such time of the demand thereof as the Corporation think fit to prescribe in that behalf, and notice to that effect shall (if and so long as the Corporation shall allow such discount) be endorsed on every demand note in respect of such charges.

(2) In the exercise of the powers of this section the Corporation shall not show undue preference to any person and shall not exercise any undue discrimination against any person.

PART III
—cont.

27.—(1) Subject to the provisions of this section, any authorised officer of the Corporation shall, on producing if so required some authenticated document showing his authority, have a right to enter at all reasonable hours any premises to which the Corporation are supplying or have agreed to supply heat under the powers of this Part of this Act, or any premises in or upon which any heating fittings have been installed for the purpose of or in connection with supplying heat to any premises as aforesaid, for the purpose of—

- (a) inspecting and examining any heating fittings whether belonging to the Corporation or not;
- (b) ascertaining whether there is or has been on or in connection with the premises any contravention of the provisions of this Part of this Act or of any byelaws made thereunder;
- (c) ascertaining whether or not circumstances exist which would authorise the Corporation to take any action or execute any work under this Part of this Act;
- (d) taking any action or executing any work authorised or required by this Part of this Act to be taken or executed by the Corporation:

Provided that, except in cases of emergency, arising from defects in any heating fittings, admission to any premises shall not be demanded as of right unless twenty-four hours' notice of the intended entry has been given to the occupier.

(2) If it is shown to the satisfaction of a justice of the peace on sworn information in writing that—

- (a) admission to any premises has been refused or that refusal is apprehended or that the premises are unoccupied or that the occupier is temporarily absent or that the case is one of urgency or that an application for admission would defeat the object of the entry; and
- (b) there is reasonable ground for entry into the premises for any such purpose as aforesaid;

the justice may by warrant under his hand authorise the Corporation by any authorised officer to enter the premises, if need be by force.

(3) An authorised officer of the Corporation entering any premises by virtue of this section or of a warrant issued thereunder may take with him such other persons as may be necessary

PART III
—cont.

and, on leaving any unoccupied premises which he has entered by virtue of such a warrant, shall leave them as effectually secured against trespassers as he found them.

(4) Every warrant granted under this section shall continue in force until the purpose for which the entry is necessary has been satisfied.

(5) Any person who, in compliance with the provisions of this section or of a warrant issued thereunder, is admitted into a factory, workshop or workplace shall not disclose to any person, except where such disclosure was made in the performance of his duty, any information obtained by him in the factory, workshop or workplace with regard to any manufacturing process or trade secret, and if he does so he shall be guilty of an offence.

(6) Nothing in this section shall authorise any authorised officer of the Corporation to enter any premises (other than offices or showrooms) belonging to or used by the British Railways Board for the purpose of their undertaking or by the generating board or the electricity board or the Gas Council or the gas board for the purposes of or in connection with the generation or supply of electricity or the manufacture, storage or supply of gas (as the case may be).

Interference
with
apparatus, etc.

28.—(1) Any person who wilfully and without the consent of the Corporation turns on, opens, closes, shuts off or otherwise interferes with any heating fitting belonging to the Corporation and thereby improperly causes the supply of heat to be interfered with, shall be guilty of an offence and, whether proceedings be taken against him in respect of his offence or not, the Corporation may recover from him the amount of any damage or loss sustained by them either as a simple contract debt in any court of competent jurisdiction or, if the amount does not exceed twenty pounds, summarily as a civil debt.

(2) Any person who wrongfully takes, uses or diverts any heat from any apparatus provided for the purposes of this Part of this Act shall (without prejudice to any other right or remedy of the Corporation) be guilty of an offence.

Byelaws for
protection of
heating
undertaking.

29.—(1) The Corporation may make byelaws for preventing the waste, misuse, undue consumption or contamination of, or interference with, the circulation or supply of heat by them under this Part of this Act.

(2) Byelaws under this section may include provisions—

(a) prescribing the size, nature, materials, strength and, workmanship and the mode of arrangement, connection disconnection, insulation, alteration and repair of the heating fittings to be used; and

(b) forbidding the use of any heating fittings which are of such a nature or are so arranged or connected as to cause or permit or be likely to cause or permit—

(i) waste, misuse, undue consumption or contamination of or interference with the circulation of heat; or

(ii) reverberation in pipes; and

(c) requiring the testing of fittings, and the making of charges therefor.

PART III
—cont.

(3) If any person contravenes the provisions of any byelaw made under this section, the Corporation may, without prejudice to their right to take proceedings in respect of such contravention, cause any heating fittings belonging to or used by that person which are not in accordance with the requirements of the byelaws to be altered, repaired or replaced, and may recover the expenses reasonably incurred by them in so doing from the person in default, either as a simple contract debt in any court of competent jurisdiction or, if the amount does not exceed twenty pounds, summarily as a civil debt.

30.—(1) If the occupier of any premises supplied with heat by the Corporation quits the premises without giving notice of his intention so to do to the Corporation, he shall be liable to pay to the Corporation all money accruing due for heat supplied by them to the premises and for meter rent up to the next date on which the register of the meter on the premises is usually ascertained or the date from which any subsequent occupier of the premises requires the Corporation to supply heat to the premises, whichever first occurs.

Notice to be given before quitting premises supplied with heat.

(2) The notice to be given under this section by an occupier of premises shall be given in writing to the address and in the manner specified by the Corporation for the purpose.

(3) There shall be endorsed upon every demand note in respect of heating charges payable to the Corporation—

(a) the foregoing provisions of this section, or a statement of the effect thereof; and

(b) the address for and manner of, service of a notice under this section; and

(c) the length of notice required by the Corporation.

31. Nothing in this Part of this Act shall exonerate the Corporation from any indictment, action or other proceedings for nuisance in the event of any nuisance being caused or permitted by them.

not to be exempted from proceedings for nuisance.

PART III
—*cont.*

Modification
of section 26
of Public
Utilities
Street
Works
Act 1950.
1950 c. 39.

32.—(1) In any case in which—

- (a) the Corporation are the operating undertakers within the meaning of section 26 of the Public Utilities Street Works Act 1950 in respect of undertakers' works authorised by this Part of this Act or are the owning undertakers within the meaning of that section in respect of apparatus laid down under the powers of this Part of this Act; and
- (b) either the Post Office, the generating board, the electricity board, the Gas Council, the gas board or the water undertakers are the owning undertakers or (as the case may be) the operating undertakers;

the said section 26 shall be modified as follows:—

- (i) the notice to be given under subsection (2) of the said section by the operating undertakers to the owning undertakers shall be accompanied by plans, sections and particulars of the works;
- (ii) subject to the provisions of the next succeeding subparagraph the said notice shall be given not less than seven days before the works are commenced;
- (iii) on the first occasion on which the Corporation execute undertakers' works under this Part of this Act, and on any subsequent occasion on which the Corporation execute such works extending for a distance of more than 100 yards, the said notice shall be given not less than twenty-one days before the works are commenced and shall be accompanied by information as to—
 - (A) the maximum temperatures and pressures at which heat is proposed to be transmitted or distributed by the Corporation by means of such works; and
 - (B) the measures (if any) proposed to be taken by the Corporation with respect to the securing of the safety of any apparatus of the Post Office or the generating board or the electricity board or the Gas Council or the gas board or the water undertakers from damage or injury arising directly or indirectly from such works and with respect to the insulation of such works so as to prevent the escape of heat therefrom;
- (iv) any question which may arise under the said section, as modified by this section, between the operating undertakers and the owning undertakers shall be determined by arbitration in accordance with section 31 of the said Act of 1950, and the proviso to subsection (2) of that section shall not apply.

(2) In this section any expressions to which meanings are assigned by the said Act of 1950 have the same respective meanings unless there be something in the subject or context repugnant to such construction.

PART III
—cont.

33.—(1) Subject to the provisions of this section the Corporation may affix to any buildings in the borough such brackets, mains, electric lines and attachments (in this section called “attachments”) as may be required for the purposes of the heating undertaking. Attachment of brackets, etc.

(2) The provisions of subsections (2) to (9) of section 45 of and Schedule 4 to the Public Health Act 1961 shall apply to any attachments affixed under subsection (1) of this section as if they were attachments affixed under subsection (1) of the said section 45 and the said provisions as so applied shall have effect with any necessary modifications including the substitution of “the Corporation” for “a street lighting authority” and the omission from subsection (9) of the definition of “street lighting”. 1961 c. 64.

(3) Nothing in this section shall authorise the Corporation to affix any attachment to—

- (a) a building for the time being included in a list published by the Secretary of State under any enactments for the time being in force with respect to ancient monuments without the consent of the Secretary of State; or
- (b) a building for the time being included in a list of buildings of special architectural or historic interest compiled by the Secretary of State under section 32 of the Town and Country Planning Act 1962, not being a building to which paragraph (a) of this subsection applies, without the consent of the Secretary of State. 1962 c. 38.

34.—(1) The Corporation, by means of an order made by the Corporation and submitted to and confirmed by the Secretary of State, may be authorised to purchase land within the borough compulsorily for the purposes of this Part of this Act. Purchase of land for undertakings.

(2) The Act of 1946 shall apply to the compulsory purchase of land under this section and accordingly shall have effect as if this section were an enactment contained in a public general Act and in force immediately before the commencement of that Act.

(3) (a) The Corporation may be authorised under this section to acquire compulsorily such easements or rights only as they may require without purchasing any other interest in the land.

(b) In relation to the compulsory acquisition of any such easement or right the Act of 1946 and the enactments incorporated therewith shall have effect as if references (whatever the terms used) to the land comprised in the compulsory purchase order were construed where the context so requires as references to the land

PART III
—cont.

in respect whereof the easement or right is acquired, and references to the obtaining or taking possession of the land so comprised were construed as references to the exercise of the easement or right.

(4) Where the Corporation have acquired an easement or right only in any land under this section—

- (a) they shall not be required or (except by agreement) entitled to fence off or sever that land from the adjoining land;
- (b) the owner or occupier of the land for the time being shall, subject to the easement or right, have the same right to use the land as if this Act had not been passed.

(5) If in his particulars of claim the owner of any land in respect of which notice to treat for an easement or right is given under this section requires the Corporation to acquire the land the Corporation shall not be entitled under this section to acquire the easement or right unless the Lands Tribunal determines that the easement or right can be granted without material detriment to the land or, in the case of a park or garden belonging to a house, without seriously affecting the amenity or convenience of the house:

Provided that nothing in this subsection shall apply to land forming part of a street.

(6) A notice to treat given under this section for an easement or right shall be endorsed with notice of the effect of subsection (5) of this section.

Separate
accounts of
heating
undertaking.

35.—(1) The Corporation shall keep separate accounts in respect of the heating undertaking so as to include all items (including receipts and payments in respect of loans applicable thereto) which ought to be entered therein in order to show the financial position of the heating undertaking and so as to distinguish capital from revenue and as to revenue so as to show under a separate heading or division on the one side all income (including investment income) in respect of the heating undertaking, and on the other side all expenditure in respect of the heating undertaking, such expenditure being divided so as also to show the amounts expended in respect of each of the following purposes, that is to say:—

- (a) the working and establishment expenses and cost of maintenance of the heating undertaking;
- (b) the interest on moneys borrowed by the Corporation for the purposes of or in connection with the heating undertaking or used for those purposes under any enactment;

- (c) the annual charges in respect of the repayment of the principal of any moneys borrowed or used as aforesaid;
- (d) all other expenses (if any) of the heating undertaking properly chargeable to revenue;
- (e) the establishment and maintenance of a reserve fund in respect of the heating undertaking.

PART III
—cont.

(2) The Corporation shall apportion between the accounts to be kept by them under this section and any other accounts of the Corporation any receipts, credits, payments and liabilities which from time to time ought to be so apportioned.

(3) In this section the expression “ investment income ” means so much of the income received by the Corporation from the investment of moneys of an authorised fund established in connection with the heating undertaking as cannot be carried to the credit of the fund because the fund has reached its prescribed maximum amount.

PART IV

STREETS

36. For the purpose of the execution of any works in or near a public footpath or bridleway in the borough, the Corporation may restrict or prohibit temporarily the use of that footpath or bridleway, or of any part thereof: Temporary stoppage of footpaths and bridleways.

Provided that the Corporation shall not exercise the powers of this section so as to deprive persons with or without cattle bona fide going to or from any building or land of reasonable access to the building or land.

37.—(1) When the Corporation consider that the continuance of a new street order in operation in the borough would be unreasonable or unnecessary they may order the variation or revocation of the said order. Revocation or modification of new street orders.

(2) When the Corporation consider that the operation of a new street order in force in the borough would be unreasonable in relation to a particular case, they may order the relaxation of the requirements of the order or dispensation with compliance therewith:

Provided that the Corporation shall give notice of any such proposed relaxation or dispensation to such persons as appear to be affected by the proposal and the Corporation shall not so order before the expiration of one month from the date of the giving of the notice, and before so ordering shall take into consideration any objections which may have been received by them.

(3) Any order made under the provisions of this section shall be registered by the town clerk in the register of local land charges pursuant to the Land Charges Act 1925.

1925 c. 22.

PART IV
—cont.

1925 c. 71.

Prohibition
of parking
or camping
on highway
verges, etc.

(4) In this section “new street order” means an order for the time being in force under section 30 of the Public Health Act 1925 or under section 159 of the Act of 1959.

38.—(1) (a) The Corporation may by order prohibit the placing and leaving of any vehicle, trailer structure, caravan or tent on the verge of or on unenclosed land adjacent to any road which is situate within the borough.

(b) In this subsection “unenclosed land” means any waste land adjacent to and within 14 metres of the road and any common land or other unenclosed land of whatsoever description within that distance from the road.

(2) Any person who contravenes the provisions of an order under this section shall be guilty of an offence.

(3) Where it is proposed to make an order under this section the Corporation shall have regard to the availability of—

(a) suitable parking facilities (whether on or off the road or whether provided by the Corporation or by some other person) for use as an alternative to those which before the making of the order have been lawfully used for that purpose; and

(b) public sanitary conveniences in convenient situations.

(4) (a) An order made under this section shall—

(i) take effect from such date as may be specified in that behalf in the order;

(ii) specify the road or roads and the unenclosed land to which it is to apply; and

(iii) specify the particular days and the particular hours between 9 o'clock in the evening and 9 o'clock in the morning during which the prohibition applies.

(b) An order under this section may—

(i) specify exceptions in respect of which the prohibition is not to apply; and

(ii) at any time be altered or revoked by a subsequent order made in like manner.

(5) Before making any order under this section the Corporation shall publish in one or more local newspapers circulating in the borough a notice—

(a) stating the general effect of the order;

(b) specifying the offices within the borough where a copy of the draft order may be inspected by any person free of charge at all reasonable hours during a period of twenty-eight days from the date of the first publication of the notice; and

- (c) stating that, within the said period, any person may by notice to the Secretary of State object to the making of the order.

PART IV
—cont.

(6) The Corporation shall also publish a notice in the London Gazette stating that they are about to make an order under this section naming the area in which is situated the road or roads to which the order will apply, specifying the offices within the borough where a copy of the draft order may be inspected and giving the name and date of issue of local newspapers in which the notice explaining the general effect of the order will be found.

(7) (a) If before the expiration of a period of twenty-eight days referred to in paragraph (b) of subsection (5) of this section or of twenty-five days from the publication of the notice in the London Gazette an objection to the making of the order to which the notice relates is duly made to the Secretary of State and the objection is not subsequently withdrawn the order shall not take effect until it is confirmed by the Secretary of State.

(b) Where the Secretary of State receives any objection to the making of an order he shall send to the Corporation a copy of every such objection and the Secretary of State, after considering every such objection and causing if he thinks fit a local inquiry to be held, may confirm or refuse to confirm the order and, if he confirms it, may do so subject to such modifications (if any) as he may think desirable.

(8) Where an order has been made and confirmed under this section, the Corporation shall erect or cause to be erected on or near any road or land to which such an order applies notices indicating the nature and extent of the prohibitions imposed by the order.

(9) (a) Nothing in this section shall apply to the placing and leaving on any land to which this section applies of—

- (i) any vehicle, trailer, caravan or tent if it is not left for more than two hours;
- (ii) any vehicle, trailer, structure, caravan or tent by or with the consent of the occupier of the land;
- (iii) any vehicle, trailer or caravan placed and left because or in connection with mechanical breakdown;
- (iv) any vehicle, trailer, caravan or tent placed and left because of the illness of any person accompanying any such vehicle, trailer, caravan or tent;
- (v) any vehicle when in use solely for the purpose of itinerant trading with the occupiers of premises adjoining any such land;

PART IV
—cont.

1968 c. 52.

(vi) any caravan when occupied solely by a person who is a gipsy as defined in the Caravan Sites Act 1968;

(vii) any vehicle, trailer, caravan (not used for human habitation) or tent used by any statutory undertaker or the British Railways Board in connection with or for the purposes of their undertakings.

1962 c. 38.

(b) Nothing in this section shall apply to any land on which tents or caravans are erected or placed in accordance with the terms and conditions on which permission has been given for the development by the local planning authority under the provisions of the Town and Country Planning Act 1962 or in respect of which a site licence is for the time being in force under Part 1 of the Caravan Sites and Control of Development Act 1960.

1960 c. 62.

(10) A prohibition on parking of vehicles on the verge of any road operating by virtue of this section shall be indicated by such traffic sign as may be approved for the purpose pursuant to sections 54 and 55 of the Act of 1967.

Control of
goods service
areas.

39.—(1) The Corporation may by order made for the purposes of this section designate land, being land to which this section applies, as a service area:

Provided that—

(a) land shall not be so designated unless it is expedient to do so to prevent or reduce traffic congestion in a street in the borough caused by the loading or unloading of vehicles standing on any such street;

(b) the land shall not be so designated unless either—

(i) it belongs to the Corporation; or

(ii) it has been provided as an area for the loading or unloading of vehicles pursuant to planning permission;

(c) where the land is in the curtilage of premises and used in connection with only one shop, the order shall relate only to such part of the land as is required for loading or unloading vehicles, including obtaining access to or egress from the point at which vehicles are loaded or unloaded for the purpose of the business conducted at those premises.

(2) No person shall cause or permit any vehicle to wait on a service area designated under this section between the hours of

8 o'clock in the forenoon and 6 o'clock in the afternoon on a weekday otherwise than for the loading or unloading of that vehicle.

PART IV
—cont.

(3) This section applies to land, within the curtilage or vicinity of shop premises, which is used or intended to be used as a place where vehicles may wait for the loading or unloading of goods and includes a roadway not being a public highway.

(4) Any person who contravenes the provisions of subsection (2) of this section shall be guilty of an offence.

(5) (a) If the Corporation consider that an order should be made under this section they shall give notice thereof to the owner and occupier of the land stating that objections to the said order may be made in writing within one month after the date of service of the notice.

(b) The Corporation shall consider all such objections and shall afford to any owner or occupier who has made objection an opportunity of being heard by a committee of the council before the order is made.

(6) (a) After considering any objections made under the last foregoing subsection the Corporation may make an order.

(b) Any such order shall come into operation at the expiration of the period of one month after the service of the notice in pursuance of subsection (7) of this section or if an appeal is lodged when the appeal is disposed of or withdrawn or fails for want of prosecution and shall have effect for such period not exceeding five years as the Corporation may determine but without prejudice to their power to make a further order in the same manner as the original order.

(7) When an order has been made by the Corporation under this section they shall give notice thereof and of the right to appeal to the owner and occupier of the land and any such owner or occupier who is aggrieved by the order may appeal to a magistrates' court.

(8) In this section, "shop premises" has the meaning assigned to it by section 1 of the Offices, Shops and Railway Premises Act 1963 and for the purposes of subsection (2) of this section 1963 c. 41. the reference therein to the loading or unloading of a vehicle shall include the carrying out of any operation which is required on the occasion of any such loading or unloading for compliance with the need for hygiene in connection with the sale of ice-cream to the public.

PART IV
—cont.

(9) This section shall not apply to any land belonging to and primarily used by the British Railways Board or any statutory undertaker for the purposes of their respective undertakings.

Damage to
trees, etc., in
streets and in
open spaces.

40.—(1) No person (except in the execution of some act which he has lawful authority to perform) shall in any street in the borough, or in any open space to which the public have access adjacent to any street in the borough—

(a) remove or cut any turf; or

(b) remove, cut or displace any tree, shrub or plant which has been planted for the purpose of improving amenities, or cut or pluck any bud, blossom, flower or leaf of any such tree, shrub or plant.

(2) Any person who contravenes the provisions of this section shall be guilty of an offence and the court may order the payment of such further amount as appears to the court reasonable compensation for any damage done by such contravention, which last-mentioned amount shall be paid to the person having control of the street or open space.

(3) In any proceedings under this section in respect of any matter referred to in paragraph (b) of subsection (1) of this section it shall be a defence for the defendant to show that he did not know, and had no reason to know, that the tree, shrub or plant in question had been planted for the purpose of improving amenities.

(4) Nothing in this section shall apply to any open space vested in, or under the control of a local authority, the National Trust for Places of Historic Interest or Natural Beauty or to any land as respects which byelaws have been made under section 90 of the National Parks and Access to the Countryside Act 1949.

1949 c. 97.

Numbers of
houses.

1847 c. 34.

41. As from the appointed day section 65 of the Towns Improvement Clauses Act 1847 shall have effect in its application to the borough as if after the words “with such numbers as the commissioners approve of” there were inserted the words “and in such position as to be easily readable from the street”, and as if after the words “a number approved of by the commissioners” there were inserted the words “and in such position as to be easily readable from the street”.

Offences
under
sections 7
and 8 of
Public
Utilities
Street Works
Act 1950.

1950 c. 39.

42.—(1) Where the commission by undertakers of an offence in the borough under subsection (2) or (4) of section 7 or subsection (3) of section 8 of the Public Utilities Street Works Act 1950 is due to the act or default of persons executing works for the undertakers as contractors, those persons shall be guilty of the

offence and may be charged with and convicted of the offence by virtue of this section whether or not proceedings are taken against the undertakers.

PART IV
—cont.

(2) In this section “undertakers” has the meaning assigned to it by subsection (1) of section 39 of the said Act of 1950.

PART V

PUBLIC HEALTH

43.—(1) Where an occupied house in the borough has ceased to be supplied with water sufficient for the domestic purposes of the occupants by reason of the absence or defective state of a supply pipe (not being a supply pipe which is laid in a highway) or the cutting off of the supply of water through that pipe or the absence or defective state of any fittings, the Corporation may, after giving not less than twenty-four hours’ notice to the owner of the house of their intention to do so, without prejudice to any action or proceedings which they may take under any other enactment, repair or renew the pipe or execute such works and provide or repair such fittings and do such other things (including the making of any payment) as they may consider necessary to secure that the supply of water to the house is restored, and may recover the expenses reasonably incurred by them in so doing from the owner of the house.

Supply of
water to
premises
where supply
cut off.

(2) In any proceedings for the recovery of expenses under the preceding subsection the court may inquire whether the whole or any part of the expenses should instead of being borne by the person from whom they are sought to be recovered be borne by the occupier of the premises in respect of which they were incurred and the court may make such order as appears to it to be just in the circumstances of the case with respect to the person (being either the person from whom the expenses are sought to be recovered or such an occupier as aforesaid) by whom the expenses are to be borne, or as to the apportionment between any such persons of their liability to bear the expenses:

Provided that the court shall not under this subsection order the expenses, or any part thereof, to be borne by any person other than the defendant in the proceedings, unless the court is satisfied that that other person at the instance of the defendant has had due notice of the proceedings and an opportunity of being heard.

(3) The powers and functions of the Corporation under the foregoing provisions of this section may be exercised by the chief public health inspector of the borough.

(4) The Corporation may, if they think fit, themselves bear the whole or any part of any expenses recoverable by the Corporation under this section.

PART V
—*cont.*

(5) The powers conferred by this section shall not be exercisable in relation to any house without the consent of the water undertakers (which consent shall not be unreasonably withheld) and in giving their consent the water undertakers—

(a) may attach thereto such reasonable conditions as they think fit, including, where the supply of water to an occupied house has been cut off by those undertakers in exercise of their statutory powers, conditions to secure that the supply to that house is not restored under the powers of this section unless the Corporation pay to the water undertakers any sum due to them in respect of the supply of water to that house, and any expenses reasonably incurred by them in cutting off the supply; and

(b) may without prejudice to any action or proceedings which they may take under any other enactment elect to carry out on behalf of the Corporation any repair, renewal or other works proposed by the Corporation, in which case the expenses reasonably incurred by the water undertakers in so doing shall be repaid to them by the Corporation.

(6) Any difference or any question as to whether the consent is unreasonably withheld which may arise between the water undertakers and the Corporation under the last foregoing subsection (other than a difference as to the meaning or construction of the said subsection) shall be referred to and determined by a single arbitrator to be appointed by agreement between the parties or, in default of agreement, by the Secretary of State.

Slaughter of
animals
otherwise
than for
human
consumption.

44.—(1) As from the appointed day the following provisions shall have effect in the borough with respect to the slaughter of any of the following animals, namely, horses, cattle, sheep, goats or pigs, where the animal is slaughtered owing to emaciation or disease, and the Meat Inspection Regulations 1963 do not have effect in relation to the slaughtering by reason of its not being for human consumption.

(2) The owner of any such animal shall comply with the following provisions:—

(a) except in the cases mentioned in paragraph (b) of this subsection, he shall not slaughter it, or cause it to be slaughtered, until he has given notice to an authorised officer of the intended slaughter of it, and not less than twenty-four hours from the giving of the notice have expired;

(b) if, by reason of accidental injury, illness or exposure to infection or other emergency affecting that animal or in order to comply with regulation 18 of the Slaughter of Animals (Prevention of Cruelty) Regulations 1958,

it is necessary to slaughter it either before the expiration of twenty-four hours from the giving of such a notice as is required by paragraph (a) of this subsection, or without giving such a notice, he may so slaughter it, or cause it to be so slaughtered; but—

(i) if the slaughter is before the expiration of the said twenty-four hours, he shall retain the carcase intact until the expiration of that period, or until its disposal is approved by an authorised officer, whichever first occurs; or

(ii) if the slaughter is without giving such a notice, he shall give notice thereof to an authorised officer as soon as practicable thereafter, and retain the carcase intact until the expiration of twenty-four hours from the giving of that notice, or until its disposal is approved by an authorised officer, whichever first occurs;

(c) he shall, on the application of an authorised officer made within two weeks from the date of its slaughter, furnish such information within his knowledge as that officer may reasonably require for the purpose of enabling him to trace the disposal of the carcase or any part thereof.

(3) Notwithstanding the requirement imposed by paragraph (b) of subsection (2) of this section on the owner of an animal to retain the carcase intact until the expiration of a period therein mentioned, he may permit a veterinary surgeon or veterinary practitioner—

(a) to send, at any time during that period, to a laboratory a specimen taken from the carcase or the whole carcase; or

(b) to take such a specimen, or the whole carcase, into his possession at any time during that period, and to retain it;

but, where the owner gives such a permission and it is acted upon, he shall give to an authorised officer notice of the action taken within twenty-four hours from the time when it is taken.

(4) Notwithstanding the requirement imposed by paragraph (b) of subsection (2) of this section on the owner of an animal to retain the carcase intact until the expiration of a period therein mentioned, if the slaughter was in a knacker's yard, or the carcase is moved to a knacker's yard immediately after the slaughter, the owner may take, or cause to be taken, from the carcase during that period any part or organ which, in the opinion of the owner, it is necessary so to take therefrom in order to prevent or minimise risk of nuisance or risk of deterioration of the carcase, but if he does so the owner shall during that period retain every

PART V
—cont.

part or organ so taken on the premises on which it was so taken, and in such manner as may be requisite for showing to the reasonable satisfaction of an authorised officer from what carcase it was taken.

(5) The owner of an animal who—

(a) without reasonable excuse contravenes this section or fails to discharge an obligation thereby imposed on him; or

(b) furnishes in response to an application under paragraph (c) of subsection (2) thereof information which he knows to be false;

shall be guilty of an offence.

1950 c. 36.

(6) Nothing in this section shall affect the operation of the Diseases of Animals Act 1950 or of any order, licence or act of the Minister of Agriculture, Fisheries and Food made, granted or done thereunder, or having effect by virtue of subsection (2) of section 89 thereof.

(7) In this section—

“authorised officer” means any officer who is, by virtue of the Act of 1955, an authorised officer for the purpose of the examination and seizure of meat under the provisions of Part I of that Act relating to food unfit for human consumption;

“knacker’s yard” means any premises used in connection with the business of slaughtering, flaying or cutting up animals the flesh of which is not intended for human consumption.

(8) References in this section to the Meat Inspection Regulations 1963 or the Slaughter of Animals (Prevention of Cruelty) Regulations 1958 or to any provision in those regulations are references to those regulations or that provision as amended or replaced by subsequent regulations.

Sale of
shellfish.

45.—(1) Any person who sells or offers or exposes for sale shellfish within the borough shall keep a record of the name and address of the person from whom he obtains the shellfish, and shall on the application of the chief public health inspector inform him of the name and address of the person from whom he obtained the shellfish.

(2) If any person required to keep a record or give information under this section fails to keep such record or give such information, or knowingly makes any misstatement in respect thereof, he shall be guilty of an offence.

(3) Nothing in this section shall require any person to preserve any record kept thereunder for a longer period than three months from the date on which he obtained the shellfish to which that record relates.

(4) In this section "shellfish" includes all kinds of molluscs and crustaceans.

PART V
—cont.

46. The Corporation may by notice require a contractor engaged in or upon any building operations in the borough or in or upon the construction or reconstruction of any works therein, within such time as may be specified in the notice—

Sanitary
conveniences
for persons
employed on
construction
work.

(a) to provide sufficient and satisfactory sanitary conveniences for the workpeople employed thereon; and

(b) where the workpeople employed thereon comprise both men and women, to provide as aforesaid for men and women separately;

if it is reasonably practicable so to do:

Provided that this section shall not apply to building operations or works—

(i) to which section 127 of the Factories Act 1961 applies; 1961 c. 34.
or

(ii) at any mine or quarry within the meaning of the Mines and Quarries Act 1954. 1954 c. 70.

47.—(1) The Corporation may by notice require the owner or occupier of any premises or place in the borough at which any exhibition, performance, amusement, game or sport to which the public are or will be admitted, is held, given or provided or is about to be held, given or provided, or in respect of which there is for the time being in force a licence under section 9 of the Betting, Gaming and Lotteries Act 1963, to provide to the reasonable satisfaction of the Corporation and thereafter to the like satisfaction maintain during the continuance of such exhibition, performance, amusement, game or sport, or during the continuance of the licence, in a suitable position such numbers of sanitary conveniences for the use of the public resorting to such premises or place as may be reasonable.

Provision of
sanitary
conveniences
at places of
public
exhibition,
etc.
1963 c. 2.

(2) Any person aggrieved by a requirement of the Corporation under subsection (1) of this section may appeal to a magistrates' court.

(3) Any person who fails to comply with a notice served on him under this section within such reasonable period, not being less than one month after the date of the service of the notice as may be specified therein, and the public are thereafter admitted to the premises or place for any such exhibition, performance, amusement, game or sport, or for effecting betting transactions shall be guilty of an offence:

PART V
—cont.

Provided that—

- (a) in any proceedings under this subsection it shall be a defence for the defendant to show that the Corporation's requirements are unreasonable or that their notice in relation thereto should have been addressed to the occupier or, as the case may be, to the owner of the premises and not to the defendant; and
- (b) no proceedings shall be taken against a person who has failed to comply with a notice served on him under this section if, on the date when the public are admitted to the premises or place in respect of which the notice was served, he has ceased to be the owner or occupier thereof.

(4) (a) Section 89 of the Act of 1936 shall in its application to the borough have effect as if for the words “ refreshment-house or place of public entertainment ” in subsection (1) of that section there were substituted the words “ or refreshment-house ”.

(b) Nothing in this section shall apply to premises to which the said section 89, as amended by this subsection, applies by reason only of the holding therein of any exhibition, performance, amusement, game or sport to which the public are admitted.

(5) The provisions of this section shall not apply to—

- (a) any premises or place in respect of which byelaws for preserving sanitary conditions at pleasure fairs and roller-skating rinks may be made by the Corporation under section 75 of the Public Health Act 1961;
- (b) premises in respect of which there is in force a licence under the Cinematograph Acts 1909 and 1952.

1961 c. 64.

Further
power to
remedy
obstructed
private
sewers.

48.—(1) Where—

- (a) several premises in the occupation of different persons are drained by means of a private sewer belonging to the owners or occupiers of those premises; and
- (b) it appears to the chief public health inspector that the sewer is obstructed;

he may by notice in writing require the persons concerned to remedy the defect within forty-eight hours from the service of the notice.

(2) If the notice is not complied with, the Corporation may themselves carry out the work necessary to remedy the defect and may, subject to the provisions of subsection (3) of this section, recover the expenses reasonably incurred in so doing from the persons concerned in such proportions as they may determine.

(3) In proceedings to recover expenses under this section the court may inquire whether any requirement contained in a notice served under this section was reasonable and whether any apportionment by the Corporation was fair, and the court may make such order concerning the expenses or their apportionment as appears to the court to be just:

PART V.
—cont.

Provided that the court shall not revise an apportionment unless it is satisfied that all persons affected thereby have had due notice of the proceedings and an opportunity of being heard.

(4) In this section “persons concerned” means, in relation to a private sewer which is obstructed, the owner or occupier of the premises on which the sewer is situated at the point at which the obstruction occurs and the owner or occupier of any other premises drained by means of that sewer if the point at which foul water and surface water are discharged from those other premises to the sewer is situated at a level which is higher than that of the said point of obstruction.

(5) The provisions of this section shall be without prejudice to section 39 of the Act of 1936 and section 17 of the Public Health Act 1961.

1961 c. 64.

(6) In this section “sewer” includes a drain.

49. If it appears to the Corporation that any party or boundary wall of any court, courtyard or yard attached to or forming part of any house in the borough or the fence or door of any such court, courtyard or yard—

(a) has collapsed or been pulled down; or

(b) is in danger of collapsing; or

(c) is in such a state of disrepair as to be a source of serious inconvenience to the inhabitants of the house or to the public;

the Corporation may by notice require the owner or occupier of the house to carry out such works (including the rebuilding, reinstatement, removal or repair of any such wall, fence or door) as are reasonably necessary.

50.—(1) Where it appears to the Corporation that there are reasonable grounds for believing that a flue in a house or building in the borough is in such a state as to be prejudicial to health or a nuisance to persons within that house or building, or within any adjoining house or building, they may apply any smoke or smell test, and, if as a result of such test they deem it necessary, open such flue for the purpose of examining it internally.

Power to
examine and
test flues
believed to be
defective.

PART V
—cont.

(2) If on examination the flue is found to be in proper condition the Corporation shall as soon as possible reinstate the same and shall make good any damage done by them.

(3) In this section—

(a) “appliance” means—

(i) a heat producing appliance including a cooker which is designed to burn solid fuel, oil or gaseous fuel; and

(ii) an incinerator;

but does not include any appliance consuming electricity or any electrical incinerator;

(b) “flue” means a passage for conveying the products of combustion from an appliance to the external air.

(4) Nothing in this section shall apply to a flue in a factory unless the building comprising the factory or in which the factory is situate either contains or immediately adjoins a dwelling.

(5) Nothing in this section shall apply to a flue in any premises in respect of which a licence is for the time being in force for—

(a) the public performance of stage plays;

(b) public music or dancing or other entertainment of the like kind;

(c) a cinematograph exhibition;

unless the premises either contain or adjoin a dwelling.

(6) Nothing in this section shall apply to a flue in a building on land—

(a) used by the gas board for the manufacture or supply of gas or by the generating board for the generation of electricity;

(b) served by a process controlled under the Alkali, &c., Works Regulation Act 1906.

1906 c. 14.

Byelaws as
to stables.

51.—(1) The Corporation may make byelaws for securing the proper ventilation and lighting of any existing stable (whether the same is used as such at the passing of this Act or not) and for the prevention of insanitary conditions—

(a) in or about or arising out of such stable; or

(b) in or about or arising out of or with regard to the situation in reference to other buildings of any stable erected after the passing of this Act.

(2) Any person who contravenes any byelaw made under this section shall be guilty of an offence.

52. Section 74 of the Public Health Act 1961 shall have effect in its application to the borough as if in subsection (1) and subsection (2) there were references to herring gulls.

PART V
—cont.

Amendment
of section 74
of Public
Health Act
1961.
1961 c. 64.
Medicated,
sauna and
other baths.

53. The Corporation may erect, construct, provide, maintain, furnish, equip, regulate and manage medicated, sauna and other baths (including baths the efficient properties of which are due to agencies other than water) and they may demand and take reasonable charges for the use thereof.

54. Section 34 of the Public Health Act 1961, in its application to the Corporation, shall have effect as if the words “and after such removal for erecting or maintaining such hoarding or fence as they consider expedient and which does not unduly interfere with reasonable access by the owner to and from the site for the purpose of preventing, so far as may be reasonably practicable, any further accumulation of rubbish on that site” had been inserted at the end of subsection (1).

Amendment
of section 34
of Public
Health Act
1961.

55. In its application to the borough the Act of 1957 shall have effect as if—

Amendment
of Act of
1957 relating
to closing
orders.

- (1) in subsection (2) of section 27 the following proviso were added thereto:—

“Provided that where the Corporation are satisfied that part of any premises as respects which a closing order has been made has been rendered fit for human habitation, they may determine the order so far as it relates to that part”;

- (2) in paragraph (b) of subsection (3) of section 27 after the word “determine” there were inserted the words “in whole or in part”;

- (3) in subsection (5) of section 27 there were added the following words:—

“or by the owner of part of any premises where such a closing order is in force in respect of that part”;

- (4) in section 28 the following proviso were added:—

“Provided that a demolition order shall not be made by virtue of this section in relation to any premises in respect of which a closing order has been determined so far as it relates to a part of those premises.”.

56. The Corporation may, as respects any premises in the borough, provide and maintain such number of dustbins or other receptacles for the reception of trade refuse as they may consider necessary.

Power to
provide
dustbins for
trade refuse.

PART VI

PUBLIC ORDER AND SAFETY

Research, etc.,
into water
safety matters.

57. The Corporation may undertake investigations and research into matters affecting the borough relating to—

- (a) the places and causes of drowning accidents or other accidents in the sea within the borough; or
- (b) the education of persons in the dangers of the sea, of water safety rules and the correct action to take in an emergency;

and may contribute by grants or otherwise towards the costs of similar investigations and research undertaken by other bodies or persons.

Powers to
establish
water safety
code.

58.—(1) The Corporation may make arrangements for the establishment of a scheme for the safety of persons and for the rescue of persons involved in difficulties or accidents in, on or under the sea within the borough, to be in operation between the 1st May and the 30th September in each and every year.

(2) The Corporation shall consult the county council of the administrative county of Devon and may consult such local authorities or such associations or persons, either national or local, as appear to them to be necessary in the formulation of the scheme referred to in subsection (1) of this section.

(3) The Corporation shall or may (as the case may be), from time to time, carry out such consultation as aforesaid in connection with the modification of the said scheme.

(4) The Corporation shall circulate copies of the scheme and shall take such other steps as appears necessary to ensure that persons using the sea within the borough are aware of the scheme.

(5) The Corporation may take all such steps as are necessary in connection with the implementation of the scheme.

Prohibition on
solicitation of
school
children to
sell or
exchange
articles, etc.,
at schools.

59.—(1) Where any child is entering or leaving any school in the borough or is entering or leaving any yard or playground appurtenant to any such school or is in any such yard or playground, no person shall solicit such child—

- (a) to sell to such person any article or thing;
- (b) to exchange with such person any article or thing for any other article or thing.

(2) Any person who contravenes the provisions of this section shall be guilty of an offence.

(3) In this section the expression “child” has the same meaning as in section 114 of the Education Act 1944, and the expression “article or thing” includes any animal, fish, bird or other living thing.

60.—(1) Subject to the provisions of this section, the Corporation may provide for the police authority—

PART VI
—cont.

(a) such police telephone call boxes and installations; and
(b) such shelters or boxes for the use of police constables; in such positions and on such terms and conditions as may be agreed in any street, park or public place in the borough as they think fit.

Police
telephone call
boxes and
shelters.

(2) Nothing in this section shall authorise the doing of anything constituting an infringement of the exclusive privilege with respect to telecommunication conferred on the Post Office by section 24 (1) of the Post Office Act 1969.

1969 c. 48.

(3) The Corporation shall not exercise the powers of this section—

(a) without the consent of the undertakers concerned—

(i) in or upon a bridge carrying a street over a railway, or the approaches thereto, or under a bridge carrying a railway over a street; or

(ii) in a street belonging to, and maintainable by, any transport undertakers and forming the approach to a station or depot of such undertakers; or

(iii) so as to obstruct or interfere with the access to, or exit from, a station or depot of such undertakers; or

(b) without the consent of the owner and occupier of the premises concerned so as to obstruct the existing access to premises abutting on a street.

(4) A consent required by this section shall not be unreasonably withheld, but may be given subject to any reasonable conditions, including a condition that the Corporation shall remove a box or shelter either at any time, or at or after the expiration of a period, if reasonably required so to do by the person giving the consent.

(5) Any question whether a consent required by this section has been unreasonably withheld, or has been given subject to unreasonable conditions, or whether the removal of a box or shelter has been unreasonably required, shall—

(a) in the case of a consent of the Secretary of State, be referred to, and determined by, arbitration;

(b) in the case of any other consent, be referred to, and determined by, the Secretary of State.

(6) In this section “transport undertakers” means railway or passenger road transport undertakers.

PART VI
—cont.

Offences in
respect of
telephone
boxes, fire
hydrants, etc.

61.—(1) Any person who wilfully, and without the consent of the appropriate authority—

- (a) obstructs the access to a police telephone call box in the borough or to a structure provided in the borough for police purposes, or to a fire alarm provided by the Corporation; or
- (b) interferes with equipment in such a call box, structure or fire alarm; or
- (c) removes, alters, defaces or obscures a mark provided by the appropriate authority for indicating the position of such a call box, structure or fire alarm, or of a fire hydrant in the borough;

shall be guilty of an offence; and the appropriate authority may recover from him the expenses of removing the obstruction or of making good or replacing the equipment or mark and the amount of such expenses in case of dispute respecting the same may be settled and determined by the court before whom he is convicted.

(2) Any person who telephones, or causes to be telephoned—

- (a) from a police telephone call box in the borough a statement which he knows to be false; or
- (b) from a call box of the Post Office telephone service in the borough, a statement which he knows to be false, made for the purpose of instigating police, fire brigade or ambulance action;

shall be guilty of an offence and, if the false statement is an alarm of fire he shall be liable to a fine not exceeding fifty pounds or to imprisonment for a term not exceeding three months or both.

(3) In this section—

- “ structure ” includes any installation; and
- “ appropriate authority ” means, in relation to a fire alarm or fire hydrant, the Corporation and, in any other case, the police authority.

Disposal of
dangerous
containers.

62.—(1) No person shall within the borough dispose of or deposit any container (including a container attached to a vehicle or machine) which has been used for the storage of inflammable, explosive or poisonous substance and is no longer used for that purpose unless he takes all such steps as may be reasonably necessary to prevent danger from the container to any person or property.

(2) Any person who contravenes the provisions of subsection (1) of this section shall be guilty of an offence, and the Corporation

may take such steps as may be reasonably necessary to prevent danger from the container and may recover from that person the expenses incurred by them in so doing:

PART VI
—cont.

Provided that no proceedings shall be instituted for an offence under this section if the disposal or deposit of the container contravenes section 19 of the Civic Amenities Act 1967.

1967 c. 69.

(3) In this section “poisonous substance” means a substance specified in the Poisons List for the time being in force under section 17 of the Pharmacy and Poisons Act 1933.

1933 c. 25.

63.—(1) Without prejudice to the provisions of any other Boundary enactment, where any building or structure or part of a building walls. or structure is demolished by the Corporation leaving exposed a wall of adjoining premises, the Corporation may—

(a) with the consent of the owners of those adjoining premises, carry out at their own expense or, if so agreed with the owner, partly at their expense and partly at the expense of the owner, any works which they consider to be reasonably necessary or desirable for either or both of the following purposes, that is to say, for—

(i) weatherproofing the surface of the wall;

(ii) restoring or improving the appearance of the wall; or

(b) make such contribution, if any, as they think fit towards any expenses incurred by the owner or occupier of those adjoining premises in carrying out works for either or both of the purposes referred to in the foregoing paragraph:

Provided that where in the opinion of the Corporation any consent required for the carrying out of works proposed by them for the purposes mentioned in sub-paragraph (ii) of paragraph (a) of this subsection is unreasonably withheld, and the appearance of the wall in question is, or unless such works are carried out will be, detrimental to the general appearance of the area in which the adjoining premises are situate, they may apply to a magistrates’ court, by way of complaint, for an order, and the court may either order the carrying out of the proposed works subject to such conditions, if any, as the court thinks fit, or disallow the carrying out of those works.

(2) An officer or servant of the Corporation, or of their contractor, acting in pursuance of an order of the magistrates’ court or of the court of quarter sessions made in pursuance of the foregoing provisions of this section, and after the giving of not less than twenty-four hours’ notice to the occupier of the

PART VI
—cont.

land on which the exposed wall is situated may, at all reasonable times, and on producing, if so required, some duly authenticated document showing his authority, enter on such land for the purpose of carrying out in compliance with the said order the works referred to therein.

(3) Nothing in this section, nor the carrying out of any works thereunder, shall impose upon the owner of any such adjoining premises as are referred to in subsection (1) of this section any liability which would not have been imposed upon him if this section had not been enacted and the said works had not been carried out, other than the liability to comply with the terms of any order made by a court under this section.

Repair of
damaged
buildings, etc.

64.—(1) Where the Corporation are satisfied that it is expedient to execute urgent repairs to any building or structure in the borough arising directly or indirectly from damage caused thereto by aircraft or other aerial devices or articles falling therefrom or by flooding, gales, lightning, earthquakes or landslides the Corporation may at their expense execute such emergency works of repair to the building or structure as are necessary in their opinion.

(2) Before exercising their powers under this section the Corporation shall, if it is reasonably practicable to do so, give notice of their intention to the owner and occupier of the building or structure.

(3) The powers and functions of the Corporation under this section may be exercised by the chief public health inspector of the borough.

Touting.

65.—(1) As from the appointed day no person shall at any place in the borough to which this section applies importune any person by touting for a hotel, lodging house or refreshment house, for a shop, for a theatre, garden, pier or place of amusement or for any service or for a boat, hackney carriage or public service vehicle.

(2) This section applies to any place—

- (a) in or on an esplanade, public car park, parade, promenade, marine drive or public walk;
- (b) in a park, pleasure ground or open space within the meaning of the Open Spaces Act 1906 which is provided by the Corporation, or under their management and control;
- (c) in any street or part of a street to which this section applies by virtue of byelaws made by the Corporation under this section.

1906 c. 25.

(3) Any person who contravenes the provisions of subsection (1) of this section shall be guilty of an offence.

66. In the application of section 82 of the Public Health Acts Amendment Act 1907 to the borough the expression "seashore" shall include any bank, barrier, dune, beach flat or other land adjacent to the foreshore in the borough.

PART VI
—cont.

Extension of
section 82 of
Public Health
Acts
Amendment
Act 1907.
1907 c. 53.

PART VII

TRADE ADMINISTRATION AND LICENSING

A. *Employment agencies*

67.—(1) In this head of this Part of this Act the expression "employment agency" means any agency or registry carried on or represented as being or intended to be carried on (whether for the purpose of gain or reward or not) for or in connection with the employment of persons in any capacity:

Definition of
employment
agency.

Provided that the following shall not be deemed to be employment agencies within the meaning of this head of this Part of this Act—

(a) any employment agency conducted by or under the direction and supervision of the Secretary of State under the Employment and Training Act 1948; or

1948 c. 46.

(b) any youth employment bureau conducted by the Corporation; or

(c) any employment agency which is carried on exclusively for the purpose of obtaining employment for—

(i) persons formerly members of Her Majesty's naval, military or air forces; or

(ii) persons released from a prison or Borstal institution or from an approved school or detention centre;

and which is certified for the time being by the Secretary of State to be properly conducted.

(2) The provisions of this head of this Part of this Act shall not apply to an agency for the supply of nurses as defined in section 8 of the Nurses Agencies Act 1957 but this subsection shall not be deemed to except from the provisions of this head of this Part of this Act any business other than for the supply of nurses carried on in conjunction with such an agency.

1957 c. 16.

68. No person shall carry on an employment agency in the borough without a licence from the Corporation authorising him so to do.

Employment
agencies to be
licensed.

69.—(1) A person requiring a licence or the renewal of a licence under this head of this Part of this Act shall make application in writing to the Corporation and shall in the application state—

Application for
licence.

(a) his full name;

PART VII
—cont.

- (b) his age and nationality;
- (c) his private address or if the application be made by or on behalf of a company, society, association or body the registered or principal office (if any) of the company, society, association or body and so far as may reasonably be required the names and private addresses of the directors or other persons directly or indirectly responsible for the management of the company, society, association or body;
- (d) the name under which and the address at which the employment agency is carried on or proposed to be carried on;
- (e) the nature of the employment agency;
- (f) whether and if so to what extent he is or has been interested in any other employment agency; and
- (g) such information (if any) as the Corporation may reasonably require with respect to the person or premises to be licensed.

(2) The person making an application under this section shall when making the same pay to the Corporation such fee as the Corporation may fix not exceeding—

- (a) in respect of an application for the grant of a licence £6.00
- (b) in respect of an application for the renewal of a licence £4.00

and the fees paid on any application for the grant or renewal of a licence may be retained by the Corporation whether the licence is or is not granted or renewed.

(3) Subject to the foregoing provisions of this section the Corporation may make such regulations as they think fit as to the manner in which and the dates at which applications for a licence or the renewal of a licence under this head of this Part of this Act are to be made or as to the transfer of a licence.

Grant of
licence.

70.—(1) The Corporation shall as soon as reasonably practicable after the receipt of an application under this head of this Part of this Act grant or renew a licence to the applicant to carry on an employment agency of the description and in the name and at the address specified in the application and may attach such conditions thereto as they may consider reasonably necessary for securing the due notification to them of any change in the name or private address of the licensee or in the nature of the business carried on at the address and generally for securing the proper conduct of the employment agency:

Provided that the Corporation may refuse to grant or renew a licence or may revoke a licence granted—

- (a) to any person under the age of eighteen years; or

- (b) to any person who on account of misconduct or for any other sufficient reason is unsuitable to hold the licence; or
- (c) in respect of any premises which are unsuitable for the purposes of an employment agency; or
- (d) in respect of any employment agency which has been or is being improperly conducted; or
- (e) in respect of any employment agency which is being carried on in contravention of the provisions of this head of this Part of this Act (other than section 68 (Employment agencies to be licensed)) or any byelaw made thereunder.

(2) If the Corporation refuse to grant or renew a licence or revoke a licence under this head of this Part of this Act they shall if required by the applicant or holder (as the case may be) send or deliver to him within seven days of the receipt of the requirement particulars in writing of the ground or grounds for such refusal or revocation.

(3) (a) Where an application is made for the renewal of a licence and objections have been taken to its renewal or when it is proposed to revoke a licence notice to that effect shall at least seven days before the question of renewal or revocation is considered be given to the applicant or holder of the licence and if within three days from the date of receipt of this notice the applicant or holder requires to be heard the application shall not be refused or the licence revoked unless the Corporation have afforded him an opportunity of being heard against the refusal or revocation.

(b) Any notice served under this subsection shall state the objections to renewal or the grounds on which revocation is proposed and shall notify the aforesaid right of being heard and also the effect of subsection (2) of this section and the right of appeal conferred by this section and the time within which such appeal may be brought.

(4) Any person aggrieved by a refusal of the Corporation to grant or renew a licence or by the revocation of a licence under this head of this Part of this Act or by any conditions attached to such a licence may appeal to a magistrates' court.

(5) Every licence granted or renewed as aforesaid shall (unless revoked) be valid for a period of twelve months and no longer.

71.—(1) The Corporation may make byelaws—

Byelaws as to
employment
agencies.

- (a) prescribing the keeping by every person holding a licence under this head of this Part of this Act of books, cards or forms showing the business conducted by him so far as it relates to his employment agency;

PART VII
—cont.

- (b) prescribing the entries to be made in connection with that business in such books, cards or forms;
- (c) for preventing fraud and immorality in the conduct of employment agencies; and
- (d) generally for regulating any premises used for the purposes of or in connection with any such agency.

(2) Every person holding a licence under this head of this Part of this Act shall keep exhibited in a suitable place (to be approved by the Corporation) in the premises to which the licence relates a copy of the byelaws made under this section.

Clients'
money.

72.—(1) The Corporation may make byelaws for safeguarding clients' money deposited with or otherwise received by persons carrying on agencies of such descriptions as may be specified in the byelaws and such byelaws may in particular impose requirements—

- (a) as to the opening and keeping of accounts at banks for clients' money;
- (b) as to the keeping of accounts containing particulars and information as to moneys received, held or paid for or on account of clients;
- (c) for requiring the delivery to the Secretary of State, at such times as may be specified in the byelaws of reports by accountants qualified for that purpose, being reports in such form and containing such information as may be specified in the byelaws:

Provided that no accountant shall be qualified as aforesaid unless he is a member of one or more of the following bodies:—

The Institute of Chartered Accountants in England and Wales;

The Institute of Chartered Accountants of Scotland;

The Association of Certified and Corporate Accountants;

The Institute of Chartered Accountants in Ireland;

Any other body of accountants established in the United Kingdom and for the time being recognised for the purposes of section 161 (1) (a) of the Companies Act 1948 by the Secretary of State for Trade and Industry;

but a Scottish firm may be so appointed if each of the partners therein is qualified to be so appointed.

(2) Any person who contravenes any byelaw made under this section shall be guilty of an offence.

(3) In this section "client", in relation to a person carrying on an agency, means a person who seeks or has obtained employment by availing himself of the services of that person.

73. The power to enter premises conferred by section 287 of the Act of 1936, as amended by section 117 (Application of general provisions of Act of 1936) of this Act shall include power to inspect the books, cards and forms kept in connection with any employment agency carried on there.

PART VII
—cont.

Entry and inspection of premises in connection with employment agencies.

74.—(1) Any person who within the borough—

Penalties for certain offences under this Part of Act.

(a) carries on an employment agency without a licence under this head of this Part of this Act or otherwise than in accordance with the terms and conditions of such a licence or obtains a licence or the renewal of a licence by wilful misrepresentation or by wilfully omitting to give any particulars which are required by this head of this Part of this Act to be given; or

(b) refuses to permit any officer of or person duly authorised by the Corporation to enter or inspect any such premises as are referred to in the last preceding section or the books, cards or forms kept in connection with the employment agency carried on therein or obstructs any such officer or person in the execution of his duties under this head of this Part of this Act; or

(c) acts or offends against any byelaw made under section 71 (Byelaws as to employment agencies) of this Act or any of the provisions of this head of this Part of this Act for the contravention of which no penalty is by this section specifically provided:

shall be guilty of an offence and in respect of any conviction for an offence in connection with any byelaws under paragraph (c) of subsection (1) of section 71 (Byelaws as to employment agencies) or under section 72 (Clients' money) or paragraph (a) of subsection (1) of this section of this Act if he is licensed a magistrates' court may instead of, or in addition to, imposing a fine, order the suspension or cancellation of his licence and of the licence of the premises in which the offence was committed if they are occupied by him.

(2) A court ordering the revocation of a licence under this section may suspend the operation of the order until the fourteen days prescribed by subsection (1) of section 84 of the Magistrates' Courts Act 1952 for giving notice of appeal to quarter sessions 1952 c. 55. have expired:

Provided that if notice of appeal is given within the said fourteen days an order made under this section shall be suspended until the appeal is finally determined or abandoned.

PART VII
—cont.

(3) Section 288 (Penalty for obstructing execution of Act) of the Act of 1936 shall not apply to this head of this Part of this Act.

B. Window cleaners

Window
cleaners to be
licensed.

75. As from the appointed day no person shall within the borough—

- (1) carry on the trade (whether whole time or part time) of window cleaner; or
- (2) perform the duties of window cleaning while employed by a person carrying on the trade of window cleaner;

without a licence from the Corporation authorising him so to do.

Applications
for and
provisions as
to window
cleaning
licences.

76.—(1) An application for a licence under this head of this Part of this Act—

- (a) shall be made in writing to the Corporation;
- (b) shall be made by or on behalf of the person requiring the licence;
- (c) may be made by such person on behalf of any person employed by him or proposed to be employed by him as aforesaid;
- (d) shall be in such form as the Corporation shall from time to time require;
- (e) shall be signed by the applicant; and
- (f) shall contain such information as the Corporation may reasonably require with respect to the applicant and every person employed by him or proposed to be employed by him as aforesaid.

(2) Every such licence shall be in force for one year only from the date of such licence or until the next general licensing day in case any such general licensing day be appointed by the Corporation (which they are hereby authorised to appoint) and the town clerk shall enter such licences in a register to be provided and kept by the Corporation for that purpose.

Grant of
window
cleaning
licences.

77. The Corporation shall as soon as reasonably practicable after the receipt of an application under this head of this Part of this Act grant or renew a licence to the applicant to carry on the trade of window cleaner or, as the case may be, to perform the duties of window cleaning.

Offences
under this
head of this
Part of Act

78. On and after the appointed day—

- (a) any person who carries on the trade of window cleaner; and

- (b) anyone employed by such person who performs the duties of window cleaning;

PART VII
—cont.—

without a licence granted or renewed under section 77 (Grant of window cleaning licences) of this Act shall be guilty of an offence.

C. Miscellaneous

79.—(1) As from the appointed day a person shall not carry on the business of a person who tattoos or offers to tattoo members of the public on premises in the borough occupied by him unless he is registered with the Corporation under this section and the premises are so registered. Registration of tattooists.

(2) On application in that behalf made to the Corporation by any person for registration of the applicant or of any premises and (if the application relates to premises) on his furnishing them with particulars of the premises the Corporation shall register the applicant or the premises and issue to the applicant a certificate of registration.

(3) This section does not apply where a registered medical practitioner, or a person working under his direction, tattoos a person for medical reasons.

(4) The Corporation may make byelaws for the purpose of securing—

(a) the cleanliness of premises in the borough registered under this section and of the instruments, towels, materials and equipment used therein; and

(b) the cleanliness of persons working in such premises in regard to both themselves and their clothing.

(5) Any person who carries on business in contravention of subsection (1) of this section shall be guilty of an offence.

(6) Any person who contravenes any byelaw made under subsection (4) of this section shall be guilty of an offence, and if he is registered the magistrates' court by which he is convicted may instead of, or in addition to, imposing a fine, order the suspension or cancellation of his registration and of the registration of the premises in which the offence was committed if they are occupied by him.

(7) A magistrates' court ordering the suspension or cancellation of registration under the last foregoing subsection may suspend the operation of the order until the fourteen days prescribed by subsection (1) of section 84 of the Magistrates' Courts Act 1952 for giving notice of appeal to quarter sessions have expired: 1952 c. 55.

Provided that if notice of appeal is given within the said fourteen days an order made under this subsection shall be suspended until the appeal is finally determined or abandoned.

PART VII
—cont.

(8) Where the registration of any person is cancelled by order of a magistrates' court under subsection (6) of this section—

(a) he shall within seven days deliver up to the Corporation the cancelled certificate of registration and if he fails to do so he shall be guilty of an offence; and

(b) he shall not again be registered by the Corporation under this section except in pursuance of a further order of a magistrates' court made on his application.

(9) The occupier of premises registered under this section shall keep a copy of the said byelaws and of the certificate of registration displayed in the premises and if he fails to do so he shall be guilty of an offence.

(10) In this section "tattoo" shall mean the insertion into the skin of any colouring material designed to leave a permanent mark.

Hairdressers.

80.—(1) As from the appointed day a person shall not carry on the business of a hairdresser or barber in the borough on premises occupied by him unless he is registered by the Corporation under this section and the premises are so registered.

(2) On application in that behalf made to the Corporation by any person for the registration of the applicant or of any premises, and, if the application relates to premises, on his furnishing them with particulars of the premises, the Corporation shall register the applicant or the premises and issue to the applicant a certificate of registration.

(3) Any person who carries on business in contravention of subsection (1) of this section shall be guilty of an offence.

(4) The occupier of premises registered under this section shall keep a copy of the certificate of registration and of the byelaws made by the Corporation under section 77 of the Public Health Act 1961 displayed in the premises, and, if he fails to do so, he shall be guilty of an offence.

1961 c. 64.**PART VIII****CULTURAL ACTIVITIES****Acquisition
and repair of
sculptures,
etc.**

81. The Corporation may acquire for exhibition or for use as a feature in connection with any development or redevelopment scheme carried out or being carried out by them in the borough works of sculpture or other objects of artistic, scientific or historical interest and may provide for the renovation, renewal, replacement or recasting of any such works or objects so acquired or otherwise in their possession or care.

82.—(1) The Corporation may enter into and carry into effect agreements or arrangements—

PART VIII
—cont.

(a) for the taking and purchase of any photograph; or

Acquisition
of works of
art produced
to order.

(b) for the production to their order of any picture or sculpture or other work of art and for the purchase thereof by the Corporation when completed.

(2) The payments to be made by the Corporation under this section shall not in any financial year exceed the equivalent of the product of a half new penny rate for the borough.

83. Any specimen, work of art or other object in the possession of the Corporation for the purposes of any museum or art gallery provided by them may be used by them for educational purposes and circulated to schools, colleges and other educational establishments in the borough or loaned to any such establishment for such period and subject to such conditions as the Corporation may determine:

Power to lend
objects for
educational
purposes.

Provided that the power conferred upon the Corporation by this section shall not be exercised in such a manner—

(a) as to be at variance with a trust subject to which the object is held by the Corporation without the consent of the donor or the trustee or the Secretary of State; or

(b) as to contravene a covenant or condition subject to which a gift or loan of an object has been accepted by the Corporation without the consent of the donor or other person entitled in law to the benefit of the covenant or condition or the Secretary of State.

84.—(1) The Corporation may sell, lend, exchange or give or otherwise dispose of any specimen, work of art, book or document—

Disposal of
unsuitable
specimens.

(a) vested in them which in the opinion of the Corporation is not required for exhibition or use in any museum, art gallery, library or other building of the Corporation; or

(b) coming into the custody of the Corporation after being left at any museum, art gallery, library or other building of the Corporation for the purpose of identification or otherwise and which has been in the possession of the Corporation for a period of not less than three months.

(2) The Corporation may make arrangements by way of sale, loan, exchange or gift with any person being the owner of any museum, art gallery or library for the transfer to that person of any specimen, work of art, book or document vested in the Corporation which in the opinion of the Corporation is more

PART VIII
—*cont.*

suitable for exhibition or use in the museum, art gallery or library of that person than in a museum, art gallery, library or other building of the Corporation.

(3) Where any object referred to in paragraph (a) of subsection (1) of this section has become vested in the Corporation by virtue of a gift or bequest—

(a) the Corporation shall, if reasonably practicable, consult with the donor or with the personal representatives or trustees of the donor before exercising the powers of this section; and

(b) the powers conferred by this section shall not, during a period of thirty-five years commencing on the date on which it became vested, be exercisable as respects that object in any manner inconsistent with any condition attached to the gift or bequest, except with the consent of the donor or the personal representatives or trustees of the donor.

(4) Where any object referred to in paragraph (b) of subsection (1) of this section is left in their custody, the Corporation—

(a) shall at that time give notice of the effect of the said paragraph (b) to the person leaving the object; and

(b) shall, if reasonably practicable, consult with that person, or his personal representatives, before exercising the powers of this section.

(5) Any moneys received by the Corporation in the exercise of the powers of this section as respects any object which has become vested in the Corporation by virtue of a gift or bequest shall be applied by them in the purchase of specimens, works of art, books or documents or paid into the art fund maintained by them under section 15 of the Public Libraries and Museums Act 1964 except in a case in which such moneys exceed fifty pounds and are subject to a trust the terms of which prevent them being so applied or paid.

1964 c. 75.

Publication of
works of
scholarship,
etc.

85.—(1) The Corporation may publish or contribute to the publication of, and sell or dispose of works of scholarship, bulletins, journals, official guides, periodicals, leaflets and documents of historical or literary interest having a local connection or relating to the functions of the Corporation.

(2) Nothing in this section shall be deemed to authorise the Corporation to do any act or thing in relation to any work or other subject-matter in or in relation to which copyright may subsist except with the consent of the person in whom the sole right to do or authorise the doing of that act or thing in relation to that work or subject-matter is for the time being vested under the law relating to copyright.

86.—(1) It shall be lawful for the Corporation—

PART VIII
—cont.

- (a) to provide suitable lecture rooms and to cause lectures to be given on such subjects as the Corporation think fit and to let such rooms and to make reasonable charges for admission to such lectures; and
- (b) to provide suitable rooms for art exhibitions and to provide or permit art exhibitions in such rooms and to let such rooms and to make reasonable charges for admission to such exhibitions:

Provision of
lectures, etc.

Provided that in connection with the powers contained in this section—

- (i) the sum to be expended by the Corporation in any one financial year on the provision of lectures; and
- (ii) the sum to be expended by the Corporation in any one financial year on the provision of art exhibitions;

shall not in either case exceed the equivalent of one-third of the product of a half new penny rate as ascertained or estimated for the purpose of Part II of the General Rate Act 1967, in addition to any moneys received by the Corporation under the provisions of this section. 1967 c. 9.

(2) The Corporation may use or allow to be used or let any part of any public library provided by them, and not at the time required for the purpose of a library, for public and other meetings and for lectures, exhibitions and performances for or in connection with the advancement of art, education, drama, science, music or literature.

(3) The Corporation may provide and sell or authorise the provision and sale of programmes of any lectures, exhibitions or performances given in pursuance of this section.

(4) Nothing in this section shall be taken to dispense with the consent of a Minister of the Crown to any appropriation, lease or other disposition of any lands of the Corporation in any case in which such consent would have been required if this section had not been enacted.

(5) Nothing in this section shall affect the provisions of any enactment by virtue of which a licence is required for the public performance of stage plays or for public music or dancing or any public contest or display of boxing or wrestling or other public entertainment of the like kind or a cinematograph exhibition.

PART IX

FINANCE AND SUPERANNUATION

Power to
borrow.

87.—(1) The Corporation may borrow—

- (a) such sums as may be necessary for any of the purposes of this Act;
- (b) without the consent of any sanctioning authority, such sums as may be necessary for paying the costs, charges and expenses of this Act;

and, subject to the provisions of this section, Part IX of the Act of 1933 shall have effect as if money borrowed under this section were borrowed under that Part.

(2) The Corporation shall repay sums borrowed under paragraph (b) of the foregoing subsection within five years from the date of borrowing.

(3) It shall not be lawful to exercise the powers of borrowing conferred by paragraph (a) of subsection (1) of this section except in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act 1946.

1946 c. 58.

Advances for
erection of
buildings, etc.

88.—(1) The Corporation may advance money to—

- (a) any person for the purpose of enabling or assisting him to purchase or lease any land in the borough; or
- (b) the owner, purchaser or lessee of—
 - (i) any land in the borough; or
 - (ii) any land (whether within or outside the borough) acquired from or leased by the Corporation;

for the purpose of carrying out any work either to enable or assist him to build on such land or to extend or improve any existing building thereon, or required in relation to the preparation or improvement of the site for that building or for the provision or improvement of services or facilities on which any trade or business carried on or intended to be carried on in such building depends:

Provided that any such advance shall not exceed nine-tenths of the amount which in the opinion of the Corporation will be the market value of the interest of the borrower in the land after the purpose of the loan has been effected.

(2) The provisions of subsections (2), (4) and (5) of section 3 of the Local Authorities (Land) Act 1963 (which section empowers local authorities to make advances for the erection of buildings on land sold or let by them) shall apply in relation to an advance

1963 c. 29.

made under subsection (1) of this section, and for that purpose those provisions shall have effect subject to the substitution for references therein to an advance made under the said section 3 of references to an advance made under subsection (1) of this section and to any other necessary modifications.

PART IX
—cont.

(3) Any person acting on behalf of the Corporation and authorised in writing by the town clerk shall have power at all reasonable times to enter any building in respect of which an advance has been made under this section for the purpose of ascertaining whether the conditions of this section and of the instrument aforesaid are being complied with.

(4) The borrower may with the permission of the Corporation (which shall not be unreasonably withheld) at any time transfer his interest in the land in respect of which the advance was made, but any such transfer shall be made subject to the terms of the instrument securing the advance.

(5) In this section—

“lessee” includes a person to whom the Corporation have agreed to grant a lease and the expression “lease” shall be construed accordingly; and

“owner” means the person (other than a mortgagee not in possession) entitled, either with or without the consent of any other person, to dispose of the fee simple of the land.

89.—(1) The Corporation may, if requested so to do by any person—

Power to
Corporation
to assist
industry.

(a) who is the owner or intended owner or lessee of any land in the borough; or

(b) who has purchased or intends to purchase or take on lease from the Corporation any land (whether within or outside the borough);

being in either case land upon which an industrial building is built or is intended to be built, extended or improved, carry out any work required in relation to the preparation or improvement of the site for that building or for the provision or improvement of services or facilities on which any trade or business carried on or intended to be carried on in such building depends, and may make grants towards the cost of such works or of the provision or improvement of such services or facilities or both:

Provided that nothing in this section shall authorise the Corporation to carry out works for the provision or improvement of services which it is the function of statutory undertakers to provide or improve.

(2) In this section “industrial building” includes a building used or intended to be used for the provision of sleeping and other accommodation or facilities by way of trade or business.

PART IX .
—cont.

Expenses of
executing
demolition
orders.

90.—(1) Any expenses adjudged to be payable to the Corporation consequent upon the exercise of their powers under subsection (1) of section 23 or subsection (3) of section 44 of the Act of 1957 shall until recovered be a charge on the premises in respect of which the expenses were incurred and on all estates and interests therein.

1925 c. 20.

(2) The Corporation shall for the purpose of enforcing a charge under this section have all the powers and remedies under the Law of Property Act 1925, and otherwise of mortgagees by deeds having powers of sale and lease, of accepting surrenders of leases and of appointing a receiver.

Certain
vehicles
deemed to be
property of
Corporation
for third-party
insurance
purposes.

91. Any vehicle for the time being in the custody and control of the Corporation and in charge of a person in their employment or any other person for whose actions they are responsible shall be deemed to be a vehicle owned by the council of a county borough for the purposes of Part VI of the Act of 1960 (which relates to compulsory insurance or security against third-party risks arising out of the use of motor vehicles).

Recovery of
sums paid to
officers, etc.

92. Where the Corporation have paid in advance to any officer or servant of the Corporation or to any officer or servant whose salary or wages are payable by the Corporation the amount of his salary or wages (as the case may be), and such officer or servant dies before the expiration of the period in respect of which such payment is made, the Corporation shall not be required to demand the return of any portion, not being more than twenty pounds, of such payment.

Sea defence
reserve fund.

1967 c. 9.

93.—(1) The Corporation may establish a fund to be called “the sea defence reserve fund”, to which they may apply from the general rate fund any sum not exceeding in any financial year the equivalent of a rate of one new penny in the pound as ascertained or estimated for the purpose of Part II of the General Rate Act 1967; and the maximum amount standing to the credit of such fund shall from time to time be determined by the Corporation.

(2) (a) Pending the application of the moneys in the sea defence reserve fund to the purposes authorised by subsection (3) of this section such moneys shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities.

(b) Any income arising from the investment of the moneys in the sea defence reserve fund in the manner provided by the foregoing paragraph and any income arising from the application of the fund to the purposes authorised shall be carried to the general rate fund and (subject to the limitations imposed by subsection (1) of this section) an amount equivalent to such income shall be credited to the sea defence reserve fund.

PART IX
—cont.

(3) The sea defence reserve fund shall be applicable to the construction of works as a defence against the sea and to make good any damage and to meet any extraordinary claim or demand arising from accident to any of such works and so that if at any time the fund be reduced it may thereafter be again restored to the maximum sum determined by the Corporation and so from time to time as often as such reduction happens.

(4) Resort may be had to the sea defence reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the maximum sum determined by the Corporation.

(5) In this section “statutory securities” means any securities in which trustees are for the time being authorised by law to invest trust funds.

94.—(1) The Corporation may establish a fund to be called “the flood relief fund” to provide for the alleviation of distress caused by the flooding of lands and buildings in the borough or for the prevention of such flooding by—

- (a) replacing, repairing or cleaning clothing or household effects destroyed or damaged by such flooding;
- (b) providing fuel to persons affected by such flooding or carrying out necessary drying operations; and
- (c) constructing such works or installing such appliances as they consider necessary for the prevention of such flooding;

and that fund shall be formed by annually appropriating thereto out of the general rate fund such an amount as the Corporation may from time to time determine not exceeding in any financial year the equivalent of the product of a half new penny rate as ascertained or estimated for the purpose of Part II of the General Rate Act 1967.

1967 c. 9.

(2) (a) Pending the application of the flood relief fund to the purposes authorised by the foregoing provisions of this section the moneys in the said fund shall (unless applied in any other manner authorised by any enactment) be invested in any securities in which trustees are for the time being authorised by law to invest trust funds.

(b) Any income arising from the investment of the moneys in the flood relief fund in the manner provided by this subsection shall be carried to and form part of the general rate fund and (subject to the limitation imposed by the proviso to subsection (1) of this section) an amount equivalent to such income shall be credited to the flood relief fund.

PART IX
—cont.

Apportionment of expenses in case of joint owners.

95. Where, under the provisions of any enactment, the Corporation execute any works of common benefit to two or more buildings belonging to different owners, and those expenses, or any part of them, are recoverable by the Corporation, they shall (if no provision is made in the enactment, or in any other enactment applied thereto or incorporated therein, as to the incidence of the expenses so recoverable) be paid by the owners of such buildings in such proportions as shall be determined by the Corporation, or, in case of dispute, by the county court.

Extension of power to invest superannuation fund moneys.

1937 c. 68.

1961 c. 62.

96.—(1) In its application to the investment by the Corporation under subsection (3) of section 21 of the Local Government Superannuation Act 1937 of any moneys forming part of, but which are not for the time being moneys required to meet payments out of, the superannuation fund maintained by the Corporation under Part I of the said Act of 1937, the Trustee Investments Act 1961 shall have effect as if—

(a) the following paragraphs were included in Part III (Wider-Range Investments) of Schedule 1 to that Act:—

“ 4. In any securities (other than those included in Part I and Part II of this schedule) issued in any part of the world, being securities which at the time of making the investment are quoted on any recognised stock exchange or similar institution; or

5. In the purchase, whether alone or jointly or in common with any other person or corporation, of immovable property of any tenure or kind in the United Kingdom, elsewhere than in the borough, the Isle of Man or the Channel Islands, or of any share or interest in such immovable property, including any interest in such immovable property comprised in a building agreement providing for the grant of a lease of such property contingent on the erection or completion of the building specified in such agreement; or

6. In the advance of money upon the security of—

(i) immovable property of any tenure or kind in the United Kingdom, the Isle of Man or the Channel Islands; or

(ii) any legal estate or interest in immovable property comprised in a building agreement as specified in the last foregoing paragraph;

and in any such case whether the security be taken by a separate and distinct mortgage or security made exclusively to the Corporation, or by a mortgage or security made jointly to the Corporation and any other person; or

7. In undertaking or financing whether alone or jointly with any other person—

- (i) the erection of a new building or the improvement or extension of an existing building; or
- (ii) building operations or other development; or
- (iii) the management of land or buildings;

on land belonging to the Corporation or to any other person or on land which is, or will be, held jointly by the Corporation and any other person; or

8. Upon the security of freehold or leasehold ground rents, land charges or rentcharges; ”;

(b) (i) in paragraph 1 of Part IV (Supplemental) of Schedule 1 to that Act there were inserted after the word “ schedule ” the words “ other than those mentioned in paragraph 4 of the said Part III ”;

(ii) after paragraph 2 of the said Part IV of the said schedule there were inserted the following paragraph:—

“ 2A. The securities mentioned in paragraph 4 of Part III of this schedule do not include shares or debenture stock not fully paid up (except shares or debenture stock which, by the terms of issue, are required to be fully paid up within nine months of the date of issue). ”.

(2) Notwithstanding anything in the Trustee Investments Act 1961 the Corporation may invest any moneys referred to in 1961.c. 62. subsection (1) of this section in any manner specified in Part III of Schedule 1 to the said Act of 1961, as amended by this section, and may also from time to time vary any such investments:

Provided that no such moneys as aforesaid shall be so invested—

(a) at any time when the value of all the investments made in the manner specified in Part III of the said schedule as so amended equals or exceeds three-quarters of the total value of the fund;

(b) in any investment in the manner specified in paragraphs 5 and 7 of Part III of the said schedule as so amended at any time when the value of all investments made under the said paragraphs 5 and 7 which form part of the superannuation fund equals or exceeds one-quarter of the total value of the wider-range part of the fund.

(3) For the purposes of the proviso to subsection (2) of this section, the value of any investment forming part of the fund shall be treated as being the value of the investment at the time of the division of the fund or at the time at which the investment was made, whichever is the later.

PART IX
—*cont.*

(4) All costs, charges and expenses incurred by the Corporation in investing moneys forming part of the fund or otherwise in relation thereto shall be paid by the Corporation out of the fund.

(5) (a) For the purposes of the foregoing provisions of this section an investment in the units of a unit trust scheme or in participation certificates or in any form of participation under any trust or scheme established in the United Kingdom or in any of the Channel Islands or in the Isle of Man having the effect of enabling persons to participate in the profits and income arising from the acquisition, holding, management or disposal of such securities or of such land or interest in land as are specified in subsection (1) of this section shall be regarded as an investment in the securities in question or in such land or interest in land.

(b) In this subsection—

“ participation certificate ” means any document conferring upon the holder the right to participate in (or constituting evidence of the right of the holder to participate in) the profits or income arising from the acquisition, holding, management or disposal of a particular investment specified or described in the document;

“ unit trust scheme ” has the meaning assigned thereto by section 26 (1) of the Prevention of Fraud (Investments) Act 1958.

1958 c. 45.

1961 c. 62.

(6) The restrictions contained in paragraphs 1, 2 (b) and 3 of Part IV of Schedule 1 to the Trustee Investments Act 1961 shall not apply to the securities in which the Corporation are authorised to invest by virtue of paragraph 1 of Part III of the said Schedule 1 or by virtue of subsection (1) of this section.

PART X

MISCELLANEOUS

Extension of
section 48
of National
Assistance
Act 1948.
1948 c. 29.

97. The provisions of section 48 of the National Assistance Act 1948 in their application to the Corporation shall extend to enable the Corporation to take reasonable steps to prevent or mitigate damage to a house of which a person admitted or removed as mentioned in subsection (1) of that section is the owner and which was his place of residence or usual place of residence immediately before such admission or removal, to empower the Corporation to enter any such house at all reasonable times for the purpose of taking such action as may be reasonably necessary to prevent or mitigate damage thereto and to enable the Corporation to recover any reasonable expenses incurred by them for this purpose:

PART X
—cont.

Provided that the Corporation shall not incur any expenditure for the purpose of preventing or mitigating damage to a house under the provisions of the said section 48 without the consent of the person admitted or removed as aforesaid, unless such consent cannot reasonably be obtained.

98.—(1) Where the Corporation are of the opinion that, by reason of damage caused thereto or as the result of unlawful breaking and entering or breaking out or attempted breaking and entering or breaking out, any house or building in the borough is not effectively secured so as to prevent unlawful entry, they may themselves do such things in relation to the house or building as are reasonably required effectively to secure it against such entry and may recover from the owner or occupier thereof any reasonable expenses incurred by them in so doing:

Protection of
property
broken into,
etc.

Provided that the Corporation shall not exercise their powers under this section without the consent of the owner or occupier of the house or building unless his identity or whereabouts cannot after reasonable enquiry be ascertained.

(2) The Corporation may delegate their powers under this section to the police authority with or without restrictions or conditions.

99.—(1) The Corporation may pay to any of their officers who act in any of the following capacities:—

Officers of
Corporation
acting as
receivers, etc.
1959 c. 72.

- (a) as the receiver appointed by an order made under Part VIII of the Mental Health Act 1959;
- (b) as the administrator of the estate of a deceased person acting by virtue of a grant made to him as the nominee of the Corporation;
- (c) as a surety to a bond required by law from an officer acting in accordance with paragraph (a) of this subsection;

the amount of any sum forfeited by him to the Crown or the Principal Probate Registrar or the amount of any payment which he is liable to make by reason of his acting in the course of his duties as an officer of the Corporation in any such capacity as aforesaid.

(2) The Corporation may pay the amount of any premiums upon an insurance policy indemnifying an officer acting in any of the capacities mentioned in subsection (1) of this section against any act, neglect or default whether his own or that of any other person occurring in the course of the receivership or administration.

PART X
—cont.

Authorities to
officers.

100.—(1) Where by virtue of any enactment in force in the borough any power or duty is required or authorised to be conferred or imposed by the Corporation on any officer any resolution of the council or a committee thereof under any such enactment conferring or imposing the power or duty may describe the officer by his name or by the designation of the office held by him.

(2) Where any such resolution whether passed before or after the commencement of this Act describes an officer by the designation of the office held by him the resolution shall unless the contrary intention appears confer the power or impose the duty (as the case may be) on the holder or holders for the time being of the office.

Further
powers as to
conference
facilities in
the borough.

101. For the purpose of promoting and facilitating the holding of conferences and other meetings of a similar nature within the borough the Corporation may incur expenditure in relation to the following matters:—

- (a) the hiring or making available of suitable premises for the holding of conferences and meetings; and
- (b) providing or arranging for the provision of refreshments for persons attending any such conference or meeting.

Service of
demand
notes, etc.
1967 c. 9.

102. The provisions of section 109 of the General Rate Act 1967 relating to the sending or service of demand notes shall apply to demand notes relating to any charges made in connection with any undertaking, department or service of the Corporation and those provisions shall be in substitution for any other provisions relating to the sending or service of such demand notes.

Public
weighing
or measuring
equipment.
1963 c. 31.

103. In the application of Part III of the Weights and Measures Act 1963 to the borough, weighing or measuring equipment shall be deemed to be provided or available for use by the public in any case where a fee for such use is charged, notwithstanding that the use of such equipment is restricted to any particular class or classes of persons.

Hire of
chairs, etc.

104. The Corporation may let chairs and other equipment on hire to organisers of exhibitions, shows and other functions within the borough and may make such charges for the hire of chairs and other equipment as they may think fit.

105. The authority of the Corporation given by virtue of section 11 of the Finance Act 1961 to the bringing by any constable of proceedings or any particular proceedings for an offence referred to in that section may be given on their behalf by a duly authorised officer of theirs and proved by the production of a document purporting to be the authority so given and to be signed by the officer giving it.

PART X
—cont.

Institution of proceedings for offences relating to certain excise duties.

1961 c. 36.

106. When any compensation, costs, damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for, such amount shall, in case of dispute, be ascertained in the manner provided by subsection (2) of section 278 of the Act of 1936.

Compensation how to be determined.

107. Notwithstanding anything in any other enactment, the Corporation may make reasonable charges in consideration of registering or undertaking to register or renew the registration of the name and requirements of any person seeking the exchange or transfer of a tenancy of a house provided by the Corporation under Part V of the Act of 1957.

Charges for registration of persons seeking exchange of houses.

108. Notwithstanding anything contained in section 253 of the Public Health Act 1875, proceedings in the borough for the recovery of a penalty under section 28 of the Town Police Clauses Act 1847 may be had or taken by the chief constable of the police force or any member of the police force authorised by him for the purpose.

Recovery of penalties under section 28 of Town Police Clauses Act 1847.

1875 c. 55.

1847 c. 89.

PART XI

GENERAL

109. As respects byelaws made under this Act the confirming authority for the purpose of section 250 of the Act of 1933 shall be the Secretary of State.

Confirming authority for byelaws.

110.—(1) Any Minister of the Crown may cause such local inquiries to be held as he may consider necessary for the purpose of any of his functions under this Act.

Local inquiries.

(2) Subsections (2) to (5) of section 290 of the Act of 1933 shall apply in relation to any such inquiry; and for that purpose the definition of “department” in subsection (8) of that section shall include any Minister of the Crown having functions under this Act.

(3) In this section “Minister of the Crown” has the same meaning as in the Ministers of the Crown (Transfer of Functions) Act 1946.

1946 c. 31.

PART XI
—cont.

Restriction
on right to
prosecute.

111. The written consent of the Attorney-General shall be requisite for the taking of proceedings in respect of an offence created by or under this Act by any person other than a party aggrieved or the Corporation.

Appeals.

112.—(1) Section 300 of the Act of 1936 shall apply to appeals to a magistrates' court under this Act; and sections 301 and 302 of that Act shall apply accordingly.

(2) Where any requirement, refusal or other decision of the Corporation against which a right of appeal is conferred by this Act—

- (a) involves the execution of any work or the taking of any action; or
- (b) makes it unlawful for any person to carry on a business which he was lawfully carrying on up to the time of the requirement, refusal or decision, or to use premises for any purpose for which they were lawfully used up to that time;

then, until the time for appealing has expired, or, when an appeal is lodged, until the appeal is disposed of or withdrawn or fails for want of prosecution—

- (i) no proceedings shall be taken in respect of any failure to execute the work, or take the action, nor shall the Corporation themselves execute the work or take the action; and
- (ii) that person may carry on that business, and use those premises for that purpose.

Liability of
directors, etc.

113.—(1) Where an offence under the sections of this Act mentioned in Schedule 2 to this Act committed by a body corporate is proved to have been committed with the consent or connivance of, or to be attributable to any neglect on the part of, any director, manager, secretary or other similar officer of the body corporate or any person who was purporting to act in any such capacity, he, as well as the body corporate, shall be guilty of that offence and be liable to be proceeded against and punished accordingly.

(2) In the foregoing subsection, “director” in relation to any body corporate established by or under any enactment for the purpose of carrying on under national ownership any industry or part of an industry or undertaking, being a body corporate whose affairs are managed by its members, means a member of that body.

114. No power conferred upon the Corporation by section 7 (Golf courses) of this Act shall be exercised in such a manner—

PART XI
—cont.

Saving for
trusts, etc.

- (a) as to be at variance with an express trust subject to which land or a building is held, managed or controlled by the Corporation, without an order of the High Court, or of the Charity Commissioners, or of the Secretary of State, or, where the trust instrument reserves to the donor, or any other person, the power to vary the trust, without the consent of the donor or that other person; or
- (b) as to contravene a covenant or condition subject to which a gift or lease of land or a building has been accepted by, or granted to, the Corporation, without the consent of the donor, grantor, lessor or other person entitled in law to the benefit of the covenant or condition.

115.—(1) In this Act “the appointed day” means such day as may be fixed by resolution of the council subject to and in accordance with the provisions of this section.

(2) Different days may be fixed under this section for the purpose of different provisions of this Act.

(3) The Corporation shall cause to be published in a local newspaper circulating in the borough notice—

- (a) of the passing of any such resolution and of the day fixed thereby; and
- (b) of the general effect of the provisions of this Act coming into operation as from that day;

and the day so fixed shall not be earlier than the expiration of one month from the date of publication of the said notice.

(4) Either—

- (a) a copy of any such newspaper containing any such notice; or
- (b) a photostatic or other reproduction certified by the town clerk to be a true reproduction of a page, or part of a page, of any such newspaper bearing the date of its publication and containing any such notice;

shall be evidence of the publication of the notice and of the date of the publication.

(5) Where any provision of this Act coming into operation on a day fixed by resolution under this section requires the registration of a person carrying on any business, or of premises used for any purpose, it shall be lawful for any person who—

- (a) immediately before that day was carrying on that business, or using any premises for that purpose; and
- (b) had before that day duly applied for the registration required by that provision;

PART XI
—cont.—

to continue to carry on that business, or to use those premises for that purpose, until he is informed of the decision with regard to his application, and, if the decision is adverse, during such further time as is provided under subsection (2) of section 112 (Appeals) of this Act.

Protection of
members and
officers of
Corporation
from personal
liability.
1875 c. 55.

116. Section 265 of the Public Health Act 1875 shall apply to the Corporation as if any reference in that section to the said Act of 1875 included a reference to this Act and as if any reference in that section to a member of a local authority included a reference to a member of a committee or a sub-committee of a local authority.

Application of
general
provisions of
Act of 1936.

117.—(1) Subject to section 74 (Penalties for certain offences under this head of this Part of Act) of this Act the sections of the Act of 1936 mentioned in Part I of Schedule 3 to this Act shall have effect as if references therein to that Act included references to this Act.

(2) The sections of the Act of 1936 mentioned in Part II of the said schedule shall have effect as if references therein to that Act included references to Part V (Public health) and also to the following sections of this Act, that is to say:—

- Section 62 (Disposal of dangerous containers);
- Section 63 (Boundary walls);
- Section 64 (Repair of damaged buildings, etc.);
- Section 67 (Definition of employment agency);
- Section 68 (Employment agencies to be licensed);
- Section 69 (Application for licence);
- Section 70 (Grant of licence);
- Section 71 (Byelaws as to employment agencies);
- Section 72 (Clients' money);
- Section 73 (Entry and inspection of premises in connection with employment agencies);
- Section 74 (Penalties for certain offences under this head of this Part of Act);
- Section 79 (Registration of tattooists);
- Section 80 (Hairdressers).

Arbitration.

118. In arbitrations under this Act the reference shall be to a single arbitrator to be appointed by agreement between the parties or, in default of agreement, to be appointed on the application of any party (after giving notice in writing to the other party or parties) by the President of the Institution of Civil Engineers.

119.—(1) Any person guilty of any of the offences against the provisions of this Act specified in column 1 of Part I of Schedule 4 to this Act shall be liable on summary conviction to a fine not exceeding the maximum specified in column 2 of Part I of the said schedule opposite to such offence, or to imprisonment for a period not exceeding the maximum specified in column 3 of Part I of the said schedule opposite to such offence.

PART XI
—cont:
Penalties for
offences
against Act.

(2) Any person guilty of any of the offences against the provisions of this Act specified in column 1 of Part II of Schedule 4 to this Act shall be liable on summary conviction to a fine not exceeding the maximum specified in column 2 of Part II of the said schedule opposite to such offence.

(3) Any person guilty of an offence against the provisions of this Act not hereinbefore specified or specified in Schedule 4 to this Act shall be liable on summary conviction to a fine not exceeding twenty pounds.

120. Section 220 of the Town and Country Planning Act 1962 (which for the avoidance of doubt declares that the provisions of that Act and any restrictions or powers thereby imposed or conferred in relation to land apply to land notwithstanding that provision is made by any local Act passed before or during the session 10 & 11 Geo. 6 for authorisation or regulation of development of the land) shall apply to this Act as if it had been passed during that session; and accordingly the Town and Country Planning Acts 1962 and 1968 and orders, regulations, rules, schemes and directions made or given thereunder shall apply to development authorised by this Act.

Saving for
Town and
Country
Planning
Acts.
1962 c. 38.

121. For the protection of the statutory undertakers the following provisions shall, unless otherwise agreed in writing between the Corporation and the statutory undertakers, apply and have effect:—

For
protection
of certain
statutory
undertakers.

(1) In this section, unless the subject or context otherwise requires—

“ apparatus ” means—

(a) electric lines or works (as respectively defined in the Electric Lighting Act 1882) belonging to or maintained by the generating board or the electricity board;

(b) mains, pipes or other apparatus belonging to or maintained by the Gas Council or the gas board;

(c) telegraphic lines belonging to or used by the Post Office;

(d) mains, pipes or other apparatus belonging to or maintained by the water undertakers;

and includes any works constructed for the lodging therein of apparatus;

PART XI
—cont.

“in” in a context referring to apparatus includes under, over, across, along or upon:

- (2) Nothing in the following sections of this Act shall relieve the Corporation from liability for damage caused by them to any apparatus in the exercise of the powers of the said sections and the said powers shall be so exercised as not to obstruct or render inconvenient (so far as is reasonably practicable) the access to any apparatus or operational land:—

Section 7 (Golf courses);

Section 36 (Temporary stoppage of footpaths and
bridleways);

Section 43 (Supply of water to premises where
supply cut off);

Section 60 (Police telephone call boxes and
shelters):

- (3) Notwithstanding the temporary restriction or prohibition on the use of any footpath or bridleway, or any part thereof, under the powers of section 36 (Temporary stoppage of footpaths and bridleways) of this Act, the statutory undertakers shall be at liberty at all times to enter upon the footpath or bridleway with any necessary vehicles for the purpose of obtaining access to any apparatus or operational land and to execute and do all such works and things in any such footpath or bridleway as may be necessary for placing, inspecting, repairing, maintaining, renewing or removing any apparatus:
- (4) Notwithstanding anything in section 39 (Control of goods service areas) of this Act, the statutory undertakers may cause or permit their vehicles to wait at any time on any service area designated under the said section 39 for such period as is necessary for placing, inspecting, repairing, maintaining, renewing or removing apparatus situated in or adjacent to such service area:
- (5) (a) Any difference which may arise between the Corporation and the statutory undertakers under this section shall be determined by arbitration;
- (b) In settling any difference under this section, the arbitrator shall have regard to any duty or obligation which the statutory undertakers may be under in respect of any apparatus and may, if he thinks fit, require the Corporation to execute any temporary or other works so as to avoid so far as may be reasonably possible the interference with any purpose for which the apparatus is used.

122.—(1) Nothing in this Act affects prejudicially any estate, right, power, privilege or exemption of the Crown, and, in particular and without prejudice to the generality of the foregoing nothing herein contained authorises the Corporation to take, use or in any manner interfere with, any land or hereditaments or any rights of whatsoever description—

PART XI
—cont.

Crown rights.

- (a) belonging to Her Majesty in right of Her Crown and under the management of the Crown Estate Commissioners without the consent in writing of those commissioners on behalf of Her Majesty first had and obtained for that purpose; or
- (b) belonging to a government department or held in trust for Her Majesty for the purposes of a government department without the consent in writing of that government department.

(2) Nothing in this section shall prejudice or affect any statutory powers of the Corporation to carry out code-regulated works within the meaning of the Public Utilities Street Works Act 1950 c. 39. in any highway vested in or maintained by the Secretary of State.

123. All the costs, charges and expenses, preliminary to and of and incidental to the preparation of and the application for and the obtaining and passing of this Act, or otherwise in relation thereto, as taxed by the taxing officer of the House of Lords or of the House of Commons, shall be paid by the Corporation out of the general rate fund or out of moneys to be borrowed under this Act for that purpose.

SCHEDULES

Section 16.

SCHEDULE 1

CONDITIONS AS TO CONSTRUCTION OF DUAL-PURPOSE VEHICLES

1. The vehicle must be permanently fitted with a rigid roof with or without a sliding panel.
2. The area of the vehicle to the rear of the driver's seat must—
 - (a) be permanently fitted with at least one row of transverse seats (fixed or folding) for two or more passengers and those seats must be properly sprung or cushioned and provided with upholstered backrests attached either to the seats or to a side or the floor of the vehicle; and
 - (b) be lit on each side and at the rear by a window or windows of glass or other transparent material having an area or aggregate area of not less than 2 square feet on each side and not less than 120 square inches at the rear.
3. The distance between the rearmost part of the steering wheel and the backrests of the row of transverse seats satisfying the requirements specified in paragraph 2 of this schedule (or if there is more than one such row of seats the distance between the rearmost part of the steering wheel and the backrests of the rearmost such row) must when the seats are ready for use be not less than one-third of the distance between the rearmost part of the steering wheel and the rearmost part of the floor of the vehicle.

Section 113.

SCHEDULE 2

SECTIONS OF ACT TO WHICH SECTION 113 OF THIS ACT APPLIES

- Section 39 (Control of goods service areas);
- Section 47 (Provision of sanitary conveniences at places of public exhibition, etc.);
- Section 74 (Penalties for certain offences under this head of this Part of Act);
- Section 78 (Offences under this head of this Part of Act);
- Section 79 (Registration of tattooists);
- Section 80 (Hairdressers).

SCHEDULE 3

Section 117.

SECTIONS OF ACT OF 1936 APPLIED

PART I

SECTIONS APPLIED GENERALLY

Section	Marginal note
271	Interpretation of "provide".
283	Notices to be in writing; forms of notices, &c.
286	Proof of resolutions, &c.
288	Penalty for obstructing execution of Act.
297	Continuing offences and penalties.
304	Judges and justices not to be disqualified by liability to rates.
328	Powers of Act to be cumulative.
340	Works below high-water mark.
341	Power to apply provisions of Act to Crown property.

PART II

SECTIONS APPLIED TO PART V AND SECTIONS 62 TO 64, 67 TO 74, 79 AND 80 OF THIS ACT

Section	Marginal note
275	Power of local authority to execute certain work on behalf of owners or occupiers.
276	Power of local authority to sell certain materials.
287	Power to enter premises.
289	Power to require occupier to permit works to be executed by owners.
290	Provisions as to appeals against, and enforcement of, notices requiring execution of works.
291	Certain expenses recoverable from owners to be a charge on the premises: Power to order payment by instalments.
292	Power to make a charge in respect of establishment expenses.
293	Recovery of expenses, &c.
294	Limitation of liability of certain owners.
295	Power of local authority to grant charging orders.
299	Inclusion of several sums in one complaint, &c.
329	Saving for certain provisions of the Land Charges Act, 1925.

1925 c. 22.

Section 119.

SCHEDULE 4

MAXIMUM PENALTIES FOR OFFENCES AGAINST ACT

PART I

(1)	(2)	(3)
Provision of Act contravened	Maximum fine	Maximum period of imprisonment
Subsection (5) of section 27 (Power to enter premises)	£100	Three months.

PART II

(1)	(2)
Provision of Act contravened	Maximum fine
Subsection (7) of section 16 (Prohibition of parking in front gardens)	£20
Subsection (2) of section 38 (Prohibition of parking or camping on highway verges, etc.)	£50
Subsection (4) of section 39 (Control of goods service areas)	£50
Subsection (5) of section 44 (Slaughter of animals otherwise than for human consumption)	£100
Subsection (2) of section 61 (Offences in respect of telephone boxes, fire hydrants, etc.)	£50
Subsection (2) of section 62 (Disposal of dangerous containers)	£50
Subsection (3) of section 65 (Touting)	£50

SCH. 4
—cont.

(1)	(2)
Provision of Act contravened	Maximum fine
Subsection (2) of section 72 (Clients' money)	£100
Paragraph (a) of subsection (1) of section 74 (Penalties for certain offences under this head of this Part of Act)	£100
Section 78 (Offences under this head of this Part of Act) ...	£20
Subsection (5) of section 79 (Registration of tattooists) ...	£100
Subsection (8) of section 79 (Registration of tattooists) ...	£20

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